
PRIVY COUNCIL

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-PC 24

IN THE MATTER OF

Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that carries the already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source:

Before:

Blackmere PC, Sumberly PC, Goffe PC

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

DISPOSITION

1. REFERRED UP to the Supreme Court. 3-0 unanimous (Sumberly PC presiding and delivering the judgment, Blackmere PC and Goffe PC concurring).

JUDGMENT OF THE PRIVY COUNCIL

2. I have sufficient grounding in the citator conventions and the record. I will now write the judgment.

3. JUDGMENT OF THE PRIVY COUNCIL

4. [2026] REALM-PC 24

5. *In the Privy Council of the Vibe Justice System, the distinct central constitutional first-instance court ([2026] REALM-PC 15). In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft) and the Sovereign's reference thereon.*

6. *Before: Sumberly PC (presiding, delivering the judgment of the Council), Blackmere PC, and Goffe PC.*

7. This is the unanimous judgment of the Council. I deliver it as the presiding Counsellor, the formalist seat; Blackmere PC, the textualist, and Goffe PC, the pragmatist, concur, with the points of emphasis I record where they fall. We sat three, as the Privy Council does at first instance for a realm-level constitutional reference ([2026] REALM-PC 15; CASE-LAW s. 10, s. 18). We have read the symmetric case file in full: the Claimant brief, the Observer brief, the committee referral, the void first draft of Bill 32 in its forty-section entirety, and the founding authorities the reference identifies. The Defendant returned no brief. We record at the threshold that this works no procedural advantage to the proponent: the formalist seat has taken every available strike-out, per incuriam, incompatibility, and ultra vires point on its own motion (CASE-LAW s. 19(1)), and the bench is satisfied the adversarial arsenal has been deployed against the proponent's case notwithstanding the empty leg.

1. CONSTITUTION AND ROUTE

2. 1.1 The void-first-draft route, and why it governs the instrument itself

3. Bill 32 is, on its own face, "a VOID FIRST DRAFT, drafted by Lexby, as counsel and engineer, without independent law-making force." That label is not modesty; it is the correct legal characterisation, and we adopt it. Under CASE-LAW s. 3(2)-(3), Lexby holds no law-making or adjudicative drafting authority, and Lexby-authored instrument text is void as an instrument from issue. The binding ratio of [2026] REALM-SC 8 and [2026] REALM-PC 12 is exact: such text is admissible as a void **first** draft that leapfrogs into the Standing Committee's **second**-draft stage, and adoption by the proper organ (Committee vote plus Royal Assent) is constitutive and cures the origin defect, the cure being spent on adoption. The governing test is the source of the artefact's force: function (engineering, which is Lexby's) as against promulgation by an organ (law, which is never Lexby's on its own account).
4. The Council records three formal points the proponent must not be permitted to elide, and which the whole bench holds as one.
5. First, the void-first-draft doctrine is a procedural guarantee, not a procedural inconvenience, and it governs the migration instrument itself. The entire merit of Bill 32 is the claim that V2 will be **legitimate**, and legitimacy is a question of route before it is a question of content. It would be a self-refuting irony if the very instrument designed to inoculate V2 against AI self-authorising law were itself treated as anything other than a void draft until the proper organ adopts it. Bill 32's status **as a void draft** is the first proof of the doctrine it proposes. We therefore reject, in advance, any framing in the Claimant's procedural motions or elsewhere that this Council is being asked to "confirm Bill 32" as if it were already an instrument. It is not. This Council defines questions and frames limits for the Committee and, on escalation, the Supreme Court. We are careful throughout not to author operative statutory wording; where we say a clause "must" do a thing, we direct the Committee's drafting, we do not enact (REALM-SC 8: the court rules the principle and directs the Committee; it does not legislate the text).
6. Second, the companion YAML records (the proposed decision, invariant, and County Court order) are void ab initio and must not enter this V1 repository. We confirm committee referral item E without qualification. A County Court order citing jurisdiction the V2 repository is a ruling from a court that does not exist in this repository: void ab initio under CASE-LAW s. 18(5) and [2026] REALM-PC 14, court formation being a substance rule and a ruling from a non-existent seat a nullity. These records are premature, reference an unenacted Act, and may be minted only in the V2 lawpack after lawful commencement.

7. Third, the reclassification of the HANDOVER to draft_implementation_brief is the correct and necessary act, and the Council would have ordered it had it not already been done. We have verified the load-bearing fact: the V2 lawpack, kernel, Charter, and Constitution exist only in the separate private repository at the V2 repository; this V1 super-repo has no lawpack/ directory; and the HANDOVER expressly states its content carries no binding force until settled through the V1 route, on pain of being the very AI-self-authorising law the migration exists to prevent. That self-denying classification is the proponent's own honesty, and it is the answer to the bootstrapping and self-authorisation questions before they are asked.
8. 1.2 Standing
9. The reference is placed by the Sovereign, acting as Sovereign, and reduced to the filed record by Lexby as registrar and engineer (CASE-LAW s. 3(1), s. 3(6)). Placing a matter and reducing the Sovereign's questions to a reference is engineering and advocacy, not the assertion of self-authority. Standing is made out at the threshold (s. 11(b)). We reject any strike-out for want of standing.
10. 1.3 Jurisdiction and the correct court
11. The reference concerns the design, architecture, and governance of an AI-assisted engineering project: the reorganisation of the Realm's own legal substrate. That is the paradigm of subject-matter jurisdiction (CASE-LAW s. 14), and the most central governance matter there is. The super-repo is the realm-as-state, not a County Court ([2026] REALM-PC 15; [2026] REALM-SC 6); the central Privy Council is the s. 10 First-Instance tier sitting centrally for realm matters, and it is the correct organ to define questions and confirm or vary limits on a first-impression constitutional reference. We reject any strike-out for want of subject-matter jurisdiction.
12. We record, as formalists, the limit on our own competence that governs disposal (Part 6): the Privy Council's office here is to rule the principle and frame the route, not to settle realm-wide entrenched statute. Only the Supreme Court enacts realm-wide (CASE-LAW s. 9), and a matter destined to construe or amend entrenched CASE-LAW articles must be **reached** by the Sovereign's express leapfrog certificate (s. 13). This is not modesty; it is the constitutional geography of the apex (s. 22(2)).
13. 1.4 Per incuriam
14. The reference identifies the full governing corpus: Bills 1, 2, 10, 14, 16, 27, 30; CASE-LAW ss. 2, 3, 9, 10, 13, 14, 18, 22; and [2026] REALM-SC 8, REALM-SC 9, REALM-PC 12, REALM-PC 14, REALM-PC 15, REALM-PC 17, REALM-PC 19. The Council sits on complete notice. No per incuriam objection lies, and no fresh sitting on want-of-notice grounds is required (CASE-LAW s. 11(e)).

15. We also reject, on the merits, the Claimant's invited declaration of incompatibility between Bill 32 and Bills 27/30 or CASE-LAW. There is no irreconcilable conflict once Questions 3 and 4 are cured by express provision. Until they are cured, the draft is incomplete, not incompatible (s. 11(f) does not lie). The no-Henry-VIII finding the Claimant moves for (Bill 14 ceiling) is confirmed, on the terms set out at Question 8.

2. THE DEFINED QUESTIONS

3. The Council confirms the eight questions are the right governing questions, and re-defines several to fix the issue before answering it, the formalist's first duty.

4. Q1 BOOTSTRAPPING (as defined). Not "may the Act commence without infrastructure" (which conflates two distinct constitutive acts), but: *may a constitutional Act be lawfully ENACTED (Royal Assent) when its operative subject-matter does not yet exist in the repository, with commencement DEFERRED to conditions in s. 2; and must the commencement condition set be so sequenced that no commencement condition is satisfiable by the V2 machinery alone?*

5. Q2 CITATION SCHEME TRANSITION (as defined). *By what instrument is the V2 primary-legislation citation scheme [2026] VJS-ACT N lawfully established alongside V1's REALM-*; and may an Act that proposes its own hand-chosen ordinal in a scheme it is simultaneously founding validly mint that citation?*

6. Q3 BILL 27 FOUR-BRANCH MANDATE (as defined). *Does Bill 32 s. 24 amend Bill 27 s. 1 by implication, or must any displacement be by EXPRESS amendment citing Bill 27 s. 1 by number; and may a savings clause confine s. 24 to V2's internal runtime record organisation while Bill 27 continues to bind the public V1 estate?*

7. Q4 COURT CONTINUITY (as defined). *Does s. 9's supersession of "the V1 court hierarchy" dissolve the courts as constitutional institutions, or only supersede V1's substantive law as the runtime source; and, court formation being a substance rule, by what express act must each V2 court be constituted before any V2 order issues?*

8. Q5 EXPRESS INCORPORATION MECHANICS (as defined). *What is the minimum valid act of incorporation under s. 11: may a lower record (Regulation, Rule Atom, Invariant) suffice, subject to a rank-floor; and must the incorporating record state the kernel effect?*

9. Q6 THE SINGLE GAZETTE (as defined). *Are the five elements of the single-Gazette doctrine lawful; and do the s. 27 publication mechanics belong in the primary Act or in a delegated Kernel Regulation under an enabling clause?*

10. Q7 CONSTITUTIONAL RELAY AND SELF-GOVERNANCE (as defined).
May V1 lawfully authorise V2 to supersede V1 as live runtime law through the proper route; is the V1 founding process provenance rather than runtime law; does V2 become self-governing on commencement; and is an express Supreme Court handover order needed to stop V1 asserting continuing control?
11. Q8 SOVEREIGN ASSENT FOR AI-MADE OR DELEGATED LAW (as defined). *Must all V2 law (including AI-drafted or delegated) carry Sovereign assent, specific or standing-bounded; what are the irreducible, machine-checkable limits on a delegated or AI lawmaking route; may the assent rule itself be amended by delegated lawmaking; and must the kernel reject, by a deterministic always-on invariant, any record lacking a valid assent source?*
3. PROVISIONAL ANSWERS
4. The Council answers each defined question provisionally, with the weight of the full bench behind it. Where the bench speaks with one voice we say so; where a Counsellor presses a sharper edge we record it.
5. Q1 - BOOTSTRAPPING
6. Answer (unanimous): enactment first, commencement deferred, is lawful; but the s. 2 condition set as drafted is circular and must be redrafted so that no commencement condition is satisfiable by the V2 machinery alone.
7. Enactment (Royal Assent) and commencement (condition satisfaction) are distinct constitutive acts. Royal Assent fixes the law; commencement fixes when it bites. Deferred commencement is ordinary (Bill 2 s. 13). On the plain words of s. 2(2)-(3) the Act "is a draft and has no binding runtime force" before commencement, and "the kernel shall not treat this Act as live authority until all commencement requirements are satisfied." Blackmere PC is right that on the text there is no "authority vacuum": the infrastructure is a condition of *commencement*, not of *validity of enactment*, and an Act may lie dormant until the world catches up to it. The Sovereign's power to declare law is not subordinate to the existence of a Rust binary.
8. But Sumnerly PC and Goffe PC press, and Blackmere PC accepts, that the *content* of s. 2 is defective. The conditions require validation "by the VJS law-pack validator," entry "into the V2 lawpack," and inclusion "in the current law-pack lock", all of which presuppose the very V2 infrastructure whose lawful existence is in question, and whose own legitimacy on the present record derives from this Act. A condition that can be met only by an artefact whose warrant flows from the Act is a bootstrap that closes on itself. This is the Observer's strongest conceded point, and the Council adopts it as sound: the kernel must never be the source that certifies its own warrant.

9. The cure is not clever drafting; it is sequencing in the world. The **force** comes from Royal Assent to the V1 Act, a V1 event lawful under the V1 route. The law-pack is merely the **compiled form** of an already-assented settlement. Commencement must therefore be defined as: **the assented settlement has been compiled into a validated, locked lawpack that carries it.** That is a deliverable, deterministic fact. "The lawpack independently validates the Act into existence" is not, and the Committee must not draft it that way. The Council frames Q1 to require an express commencement sequence in which (a) Royal Assent (V1 organ) is wholly antecedent; (b) a recorded act brings the V2 infrastructure into existence under that assent; and (c) lawpack validation, entry, and lock follow, confirming **form**, never **legitimacy**. A transitional bridge to this effect (referral option A's third limb) is required.
10. Q2 - CITATION SCHEME TRANSITION
11. Answer (unanimous): this Act may establish the [2026] VJS-ACT N scheme on the Bill 16 precedent, but only by an express scheme-establishing provision; the hand-chosen self-citation [2026] VJS-ACT 8 is void as a mint and must be replaced by a deterministic ordinal minted on the empty series at commencement.
12. Bill 16 is on all fours: it carried the LEXBY-*** to REALM-*** transition, and a citation scheme is established by an enacting instrument, with prior citations preserved as valid historical identifiers ([2026] REALM-PC 11 confirms the deterministic engine mints flat annual ordinals). A constitutional Act of this magnitude may carry the scheme within itself or by a companion instrument enacted simultaneously, the choice being a reversible drafting call for the Committee. But s. 1(3) as drafted merely **proposes** an ordinal; it does not enact a scheme, and inference is the precise vice this constitution forbids. The Committee must add an operative section stating the series code, the form [YEAR] VJS-ACT N, the deterministic minting rule, and the express preservation of REALM-*** citations (which s. 23(3) foreshadows).
13. On the self-citation, the formalist objection is decisive and the whole bench holds it: a citation must be minted by the deterministic engine under an **already-existing** scheme; an instrument cannot validly assign itself the ordinal "8" in a series it is simultaneously founding, because the minting authority must precede the minted item, and "8" falsely presupposes seven prior entries that do not lawfully exist. The clean route, which Goffe PC and Sumberly PC agree on, is that the scheme-establishing limb takes effect on commencement and the first VJS-ACT ordinal is minted deterministically at that point (whatever the engine yields on the empty series), the "8" being a non-operative placeholder until then. The deterministic-citation-integrity gate (CASE-LAW s. 19(5)) must fail closed on any duplicate or non-deterministic number.

14. Q3 - BILL 27 FOUR-BRANCH MANDATE
15. Answer (unanimous): the displacement must be EXPRESS; s. 24 as drafted offends the no-silent-relaxation rule and must be cured by an express savings clause confining it to V2 internal record organisation, or, if release of the public estate is intended, by an express amendment of Bill 27 s. 1 by number.
16. This is the question on which the formalist seat is most exacting, and the bench is unanimous on the principle. Blackmere PC has read Bill 27 in the original. Its s. 14(2) is express and controlling: the four-branch layout mandate (s. 6) and the system-data-only rule (s. 7) "are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express." That is a Thoburn-style entrenchment enacted by an in-force Act of the Realm. Bill 32 s. 24 nowhere cites Bill 27 by number; it says only that V2 "does not carry forward" the four-branch structure as mandatory runtime structure. As drafted, s. 24 is an attempt to relax a mandate that its own parent provision forbids relaxing other than expressly.
17. The lawful and narrower construction, which the Council adopts, distinguishes the principle from the mechanism. CASE-LAW s. 21 and s. 22, and [2026] REALM-PC 14, already hold that a path name is non-operative and that authority comes from substance, not file location: the gate checks the substance, not the filename. V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel-effect) is therefore *consistent with the deeper law*: the four-branch separation of powers survives as a constitutional principle the kernel enforces by record-role; only the mandatory *folder names* are released. But this must be said expressly. The Council directs that s. 24 carry an express savings clause to the effect that nothing in it amends or displaces Bill 27 s. 1, which continues to bind the public VJS estate, and that s. 24 governs only V2 internal runtime record organisation. The Council rejects the Claimant's framing that s. 24 "does not amend Bill 27 as a matter of force" while simultaneously declining to carry it forward: that is precisely the silent displacement the Amendment Procedure forbids. We add Goffe PC's operability rider: the V1 public super-repo *remains* four-branch under Bill 27 for as long as it is the public-facing estate (it continues to publish into the single Gazette); conflating the public estate with the V2 runtime repo would break the public layout the world already reads.
18. Q4 - COURT CONTINUITY

19. Answer (unanimous, and the gravest defect in the draft): the courts continue, but no court may continue by mere mention in an authority-hierarchy list; each V2 court must be EXPRESSLY incorporated (s. 11) or EXPRESSLY reconstituted, with an odd bench (s. 10, s. 18), before any V2 order issues; the s. 12 hierarchy is aspirational until then; and the Charter's removal of the Court of Appeal is ineffective as drafted.
20. The whole bench treats this as the sharpest constitutional defect in the package, because the failure mode is catastrophic and silent: an Act that abolishes the courts that police it. The draft is internally contradictory. Section 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among superseded items, and s. 9(5) says nothing continues unless expressly incorporated; yet s. 12 references Supreme Court Orders, Privy Council Orders, and County Court repo Orders as live V2 tiers. The Act *abolishes the courts in s. 9 and then assumes their orders in s. 12.* Under the Act's own concordance rule (s. 6(4)), a material discrepancy is a validation defect to be routed for correction. We so route it.
21. The deeper point is decisive and the bench holds it as one. The court structure is fixed by CASE-LAW s. 10 (entrenched), and the single central apex by s. 22(2) ("the singleness ... may never be relaxed"). These are amendable only by express, deliberate amendment citing the article by section number. A broad supersession clause cannot amend an entrenched article it does not name. It follows, as Blackmere PC and Goffe PC put it, that the s. 10 hierarchy survives s. 9 automatically, because s. 9 cannot reach an entrenched article by implication; the literal reading is void to the extent it purports to abolish the s. 10 structure. But survival-by-entrenchment is too thin a thread for a migration that must run. As Sumberly PC insists, court existence is substance, not reference ([2026] REALM-PC 14; REALM-PC 15; s. 18(5)): if a V2 bench is not lawfully constituted, every order it issues is void ab initio. The Council therefore directs an express court-continuity or reconstitution provision naming each V2 court, its odd bench size, and its jurisdiction, before any V2 order may issue.
22. On the Court of Appeal, the Charter records it is "not carried forward in the V2 MVP." That makes the point sharper, not softer. Removing a tier touches the entrenched three-tier structure of s. 10 and cannot be done by a Charter signed by the Principal alone, nor by an MVP design choice, nor by omission. The Committee must choose, expressly, among three lawful routes: (i) express amendment of CASE-LAW s. 10 citing it by number (a heightened act reserved to the Supreme Court / Sovereign); (ii) keep the Court of Appeal (the safe default); or (iii) recast "no CA" as administrative non-convening (no appeals yet arise) that does not purport to abolish the tier (workable for an MVP). What may not happen is a quiet two-tier system where s. 10 entrenches three.

23. Q5 - EXPRESS INCORPORATION MECHANICS

24. Answer (unanimous): any of the seven s. 11(2) record types suffices for incorporation within its own competence, subject to a rank-floor; and all five s. 11(3) elements, including the kernel effect, are mandatory. Identification of the V1 source and operative rule alone does not suffice.

25. The s. 11(2) menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is closed and acceptable as to form; the word "only" is exhaustive, and any one of the seven is a valid vehicle. This is the right pragmatic calibration: requiring a primary Act for every carried-forward V1 micro-rule would make the migration undeliverable. But the Council imposes the rank-floor. Sumnerly PC and Blackmere PC require: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14, the no-Henry-VIII ceiling); it cannot, by incorporating V1 constitutional material, do indirectly what it could not do directly. So constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record.

26. As to content, s. 11(3) is conjunctive and requires identification of the V1 source, the V2 destination, the operative rule, the kernel effect, and any supersession. The whole bench holds the kernel effect mandatory, on the text and on workability alike: in a computer-first system a rule with no kernel effect is not in the runtime authority graph (the draft's own s. 17(4) so provides). An incorporation naming a V1 source and an operative rule but no kernel effect gives the clerk nothing to execute; it is archive prose wearing a runtime badge. We confirm s. 11 with the rank-floor and the mandatory-kernel-effect gloss. The Council adopts Goffe PC's operability caution: the Committee should consider whether an un-incorporated-but-needed matter is routed to a bench rather than returned as "no law," so the migration does not create silent ungoverned surfaces (the s. 7 "silence is no defence" principle, in machine form), and never a permission-by-default.

27. Q6 - THE SINGLE GAZETTE

28. Answer (unanimous): CONFIRM all five elements; and the s. 27 publication mechanics are best delegated to a Kernel Regulation under an express enabling clause, the principle staying in the primary Act.

29. This is the most workable part of the package, and the bench has least quarrel with it. Publication and authority are different layers, the same discipline as the source-of-force test in [2026] REALM-PC 12 and the release/publication regime in REALM-PC 16. We confirm: (1) one Gazette, two estates (V1 Archive, V2 Current) is lawful, the Gazette being the public record of the Realm carrying system data only (Bill 8; Bill 22; Bill 27 s. 7); (2) publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1, force coming from promulgation by the organ, not from appearing on a page; (3) the Gazette is not the runtime source, the lawpack is; (4) typed lineage edges to V1 archive material are lawful and indeed required by the no-implication rule, so the chain is explicit and traceable; (5) the kernel need not, and indeed must not, read the Gazette for runtime decisions, consistent with s. 13 (no semantic-similarity search) and the Charter's rule that the kernel never makes long documents part of runtime.
30. On the allocation point (referral F): the export gate (fail unless the lawpack validates, the scan passes, statuses are valid, citations are unique, lineage resolves, and the manifest carries the digest) is the public-private boundary (Limit 9) enforced mechanically, and it must be kept. But the detailed mechanics are subordinate, machine-checkable detail that change as tooling changes; freezing them in a constitutional Act over-freezes them. The Council recommends, with [2026] REALM-PC 10's preference for SI/regulation over fresh statute for operational detail, that the principle stay in the primary Act and the mechanics descend to a Kernel Regulation made under an express enabling clause, that delegation itself satisfying the Q8 declarations (maker, scope, form, validation, review, commencement).
31. Q7 - CONSTITUTIONAL RELAY AND SELF-GOVERNANCE
32. Answer (unanimous): the relay is lawful in principle; elements (1), (2), (4), (5) confirmed; element (3) confirmed subject to the entrenched assent rule and to an EXPRESS Supreme Court handover order, which is required to stop V1 asserting continuing control.
33. The Sovereign holds plenary power to make or unmake law by due process (CASE-LAW s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. CASE-LAW s. 9(3) and [2026] REALM-PC 17 confirm that a jurisdiction may, by express local sovereign act, amend its law and become independent, default subscription not being perpetual subjection. We confirm that V1 may so authorise V2; that the V1 founding process is provenance, not daily runtime law; that V2 self-governs through its native route after commencement; and that V1 remains Gazette and Archive.

34. Two points the whole bench presses. First, the Observer's "perpetual constraint" objection is rejected, and the constraint embraced as a feature. Entrenchment is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would not be self-governing but **ungoverned**: it would be a jurisdiction in which AI could authorise its own law, the precise evil the migration exists to prevent. The assent rule is amendable, but only by specific Sovereign assent to a primary Act (s. 31(3)). The lock is a lock only against the **delegate**; the **Sovereign** holds the key throughout. As Goffe PC puts it, the Committee should state expressly that the assent rule binds the **delegate**, never the **Sovereign**, so no future reader mistakes entrenchment for a fetter on the Crown. Second, the formalist refinement on "continuing control" (referral G): V2 self-governance is not perfected merely by Bill 32 declaring it. Because the apex is single and central and its enactment is non-delegable (s. 22(2); REALM-SC 6), and because an **Act** cannot of itself direct the **courts** to relinquish jurisdiction, an express Supreme Court handover order is required to stop the V1 courts asserting continuing appellate or supervisory control over V2 runtime matters. The relay is lawful; the **handover** needs the apex. This is the strongest reason for leapfrog (Part 6).
35. Q8 - SOVEREIGN ASSENT FOR AI-MADE OR DELEGATED LAW
36. Answer (unanimous): CONFIRM the doctrine in full. It is the constitutional heart of the migration and is declaratory of existing binding law; and the kernel-rejection rule must be a deterministic, always-on invariant that exists and passes as a condition of commencement.
37. The bench is at its most united here. The proposed doctrine is not novel constitution-making; it is the codification of binding law already on the books, projected from "Lexby's pen" to "any AI maker":
38. - CASE-LAW s. 3(2)-(3): Lexby holds no law-making authority, and Lexby-authored instrument text is void on its own account.
39. - CASE-LAW s. 2: legislative power is the Sovereign's, by due process.
40. - Bill 14 s. 3(3): a delegated power may not be used to widen its own scope; a purported self-extension is ultra vires and void. Bill 14 s. 12 (anti-Henry-VIII): no power, express or implied, to amend primary or entrenched law by a delegated instrument. Bill 14 s. 9: an agent may propose, draft, codify, consolidate, and revise **only**; the power to draft is never the power to enact.
41. - [2026] REALM-PC 12 / REALM-SC 8: adoption by the proper organ is constitutive; the test is the source of the artefact's force.

42. We confirm each limb: (1) all V2 law requires Sovereign assent, specific or standing-bounded; (2) AI may operate machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; (3) a delegated body must declare maker, scope, prohibited subjects, form, validation, review/veto, and commencement (s. 31); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act; (5) the kernel must reject any record lacking a valid assent source. Standing-bounded assent is lawful as the analogue of delegated legislation under a Sovereign-assented enabling Act, with the no-Henry-VIII ceiling doing the load-bearing work. Blackmere PC's textual sharpening is adopted: the doctrine must state expressly that a standing-bounded route may make only **subordinate** law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts, and the Committee should align the wording to Bill 14 s. 12-13 by number so the ceiling is express, not inferred.
43. The Council further adopts Goffe PC's two load-bearing operability conditions, which convert the doctrine from prose into a deliverable. First, each s. 31 field must be a typed, kernel-evaluable property; a "bounded route" whose scope lives in unenforceable prose is a blank cheque in disguise, because the kernel cannot reject what it cannot evaluate. Second, and most important, the kernel-rejection rule (s. 30(6), Limit 17) is the enforcement teeth and must be a deterministic, always-on invariant, not a model judgment, failing closed on any record lacking a traceable assent edge, exactly as the citation-integrity gate fails closed on a duplicate (s. 19(5)). The Council holds that the **existence and passing of that invariant is itself a commencement condition**. Without it, Limits 15 and 16 are ceremonial.
4. THE LIMITS
5. The Council confirms or varies the seventeen proposed limits as follows. We record, on our own motion, that no limit is confirmed as **operative** law by this Council: we confirm them as the frame the Committee and Supreme Court must honour. This Council does not enact; the confirmations bind the **route**, not the statute book.
6. | # | Limit (short) | Disposition |
7. |---|---|---|
8. | 1 | Constitutional Act, Royal Assent, not by delegated authority | CONFIRM (CASE-LAW s. 2; Bill 2 s. 21; s. 32). |
9. | 2 | V1 superseded as live law, not destroyed; Gazette/Archive/citations/evidence preserved | CONFIRM (s. 10; Schedule 2). |

10. | 3 | No V1 rule imported by implication; incorporation express and recorded | CONFIRM, with the kernel-effect rider (Q5): the incorporating record must also state the kernel effect; and the principle applies equally against *implied displacement* (Q3). |
11. | 4 | Four-branch structure expressly amended or preserved by incorporation, not displaced by implication | CONFIRM the limit, VARY the draft. s. 24 must carry an express savings clause that it does not amend Bill 27 s. 1 (which continues to bind the public estate) and governs only V2 internal record organisation; or, if release of the public estate is intended, an express amendment of Bill 27 s. 1 by number. No silent middle. |
12. | 5 | V1 court hierarchy continues by incorporation or is separately reconstituted in V2 | CONFIRM the limit, VARY the draft. Add express: the s. 10 hierarchy survives s. 9 automatically (no implied amendment of an entrenched article); each V2 court must be expressly incorporated or reconstituted with an odd bench (s. 10, s. 18) *before any V2 order issues*; removing the Court of Appeal requires express amendment citing s. 10, or recasting as administrative non-convening. |
13. | 6 | Computer-first does not abolish human-readable law; live operational law must be machine-checkable | CONFIRM (s. 4, s. 5, s. 6). |
14. | 7 | Kernel is a clerk, not legislator or court | CONFIRM (s. 13(3); CASE-LAW s. 3 by analogy). This is the structural guarantee that the kernel never becomes the AI sovereign Q8 forbids. |
15. | 8 | Lexby remains advocate/advisor/engineer, not source of legal force | CONFIRM (CASE-LAW s. 3(2)-(7); REALM-SC 8; REALM-PC 12). |
16. | 9 | Public/private boundary preserved | CONFIRM (Bill 22; REALM-SC 9; REALM-PC 18), enforced by the deterministic scanner (s. 27), not by judgment. |
17. | 10 | Real-world law unaffected; external supremacy floor | CONFIRM (REALM-SC 9; REALM-PC 18). Non-derogable. |
18. | 11 | One Gazette, two estates; publication does not create runtime force | CONFIRM (Part 10). |
19. | 12 | V2 may publish into the Gazette while deriving force from lawpack and kernel-recognised status | CONFIRM (s. 26(6); s. 29(3)). |
20. | 13 | On commencement V2 is self-governing successor for runtime; not required to use V1 machinery | CONFIRM, VARY: add "subject to the entrenched assent rule (Limits 15-17), which V2 may not unmake by its own machinery, and subject to the express Supreme Court handover order"; the entrenchment binds the *delegate*, never the *Sovereign*. |

21. | 14 | V1 founding process is migration provenance, not daily V2 runtime law | CONFIRM (s. 28; the HANDOVER's own classification confirms it). |
22. | 15 | All V2 law requires Sovereign assent, specific or standing-bounded | CONFIRM (s. 30; Q8). |
23. | 16 | AI may operate machinery but not be sovereign / expand competence / amend assent rule / create force from own output | CONFIRM (s. 30(4), s. 31; Bill 14 s. 3(3), s. 12). |
24. | 17 | Kernel must reject any record claiming binding force without a valid assent source | CONFIRM, and ELEVATE to a commencement condition: the rejection must be a deterministic, always-on invariant proven to exist and pass before commencement. Without it, Limits 15-16 are ceremonial. |
25. Net: twelve limits confirmed as drafted (1, 2, 6, 7, 8, 9, 10, 11, 12, 14, 15, 16); Limits 3 and 17 confirmed with riders; Limits 4, 5, and 13 confirmed in principle but the Bill text must be VARIED so the drafting matches the limits and obeys the express-amendment rule. The Q2 citation scheme and the Q8 Henry-VIII alignment require express drafting additions.
5. ADVANCE ASSENT
6. The Sovereign has stated, on the record: "assent is given to the final bill," directing that the matter be driven through the Privy Council and Supreme Court to completion. The Council addresses this as a question of law, neither inflating nor evading it, the whole bench concurring.
7. Advance assent is lawful, but only as a conditional and pinned commitment that does not crystallise into the constitutive act until the final ascertained text exists and is fixed. Royal Assent is, by its nature, assent *to a text*: it is the organ's constitutive act on a determinate instrument (Bill 2 s. 21; REALM-PC 12: an instrument carried by Committee vote plus Royal Assent *stands*). An assent directed at a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to be constituted. To hold otherwise would let assent operate as a "blank cheque", and that is the gravest risk in this entire reference, because an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the machinery can move the "final" text and assent attaches automatically to wherever it lands, then in substance the AI has authored binding law and the Sovereign has stamped a moving target. That cannot stand.

8. The Council therefore characterises "assent is given to the final bill" as a standing direction and advance conditional commitment, which ripens into operative Royal Assent only when the final text is fixed and the Sovereign's specific assent is recorded against that ascertained text. This is not a diminution of the Sovereign's word; it is the only characterisation that keeps the assent meaningful and lawful, and it protects the Sovereign: an unpinned advance assent would let a drafting error or an overreaching clause acquire Royal Assent the Sovereign never actually saw. Three formal requirements bind, or the grant is a blank cheque the law will not enforce as a constitutive act:
 1. The final text must be fixed by the proper organ. Advance assent does not cure the void-first-draft status of Bill 32; it cannot, because adoption by the Committee is constitutive of the **instrument** and assent constitutive of **enactment** (s. 3(5)). Advance assent plus Committee adoption plus a recorded assent against the adopted text equals lawful enactment. Advance assent alone, against a void draft, enacts nothing.
 2. The final text must be bounded so the assent is to a known thing. What binds "final" and prevents a blank cheque is this Council's defined questions and confirmed limits, and the Supreme Court's settlement on escalation. The advance assent is lawfully directed at "the final bill **that resolves Q1-Q8 and honours Limits 1-17 as varied, and incorporates the Supreme Court's handover order**." The frame is the boundary. An assented text departing from the settled frame would be a **different** instrument, outside the scope of the commitment, requiring fresh specific assent. Concretely, "final" is the Committee's adopted second draft, presented back to the Sovereign as a fixed, citable artefact (a specific commit and digest), the assent biting when the Sovereign confirms, or does not dissent from, that pinned text.
 3. The assent honours, and does not circumvent, s. 32(2). The draft's own s. 32(2) requires that **this Act** receive specific Sovereign assent. That is satisfied only if the specific assent is ultimately recorded against the final ascertained text. The advance commitment cannot be self-validating, and it cannot be routed through the standing-bounded delegated route of s. 30, because a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule, that being the AI-self-authorising bootstrap the migration forbids. The bootstrap of the assent rule is, and must be, a V1-Sovereign act through the V1 route: the V1 Sovereign specifically assents to the primary Act, and **thereafter** the rule governs V2 delegated lawmaking. That is coherent and not circular.

4. The Council records the formal safeguard within Limit 17: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source, and the kernel must reject any V2 record relying on it. On that footing the advance assent is lawful and meaningful. On any other footing it is a direction only, and the constitutive act remains outstanding; Lexby's s. 2 duty would then be to push back and route the final text for confirmation.
6. DISPOSAL AND LEAPFROG
7. The eight questions are DEFINED and answered provisionally as above. Twelve of the seventeen limits are CONFIRMED as drafted, two (3, 17) with riders, and three (4, 5, 13) confirmed in principle but the Bill text VARIED. The companion YAML records are excluded as void ab initio. The advance assent is held lawful only as a conditional commitment pinned to a determinate final artefact confirmed before commencement.
8. The Council unanimously certifies this matter to LEAPFROG to the Supreme Court, and recommends that the Sovereign issue the express leapfrog certificate (CASE-LAW s. 13; s. 20). The grounds are squarely within s. 20(2) and lie beyond this Council's amending competence:
9. - The matter is genuinely constitutional and foundational: it re-settles the jurisdiction, the citation scheme, the court geography, and the assent rule for all future AI-made law.
10. - It construes and would amend entrenched articles, CASE-LAW s. 10 and s. 22 on Q4 (the court structure and single apex, including any removal of the Court of Appeal), and entrenches the assent rule on Q8. A Privy Council of three cannot settle an amendment of an entrenched article; only the Supreme Court can, and for a constitutional question it sits as the full nine (s. 10; s. 18).
11. - Only the single central apex can issue the binding realm-wide handover order that directs the V1 courts to relinquish continuing control over V2 runtime matters, apex enactment being non-delegable and the singleness of the apex never relaxable (s. 22(2); [2026] REALM-SC 6; only the Supreme Court enacts realm-wide, s. 9).
12. - The Principal has directed the matter be driven through the PC and SC to completion, and the point has been ventilated below on a full symmetric file (s. 20(2)). The certificate, to be valid, must be express, recorded, and reasoned (s. 20(3)).

13. Given the magnitude (the supersession of the entire V1 legal system, the constitution of AI lawmaking, the Sovereign-assent rule, an entrenched-tier change, and the advance-assent mechanics), the Council recommends that the Supreme Court sit as the full court of nine (CASE-LAW s. 10; s. 18(1)).
14. The precise handover-order questions the Council frames for the apex court:
15. Upon (a) Royal Assent specifically recorded against the final, pinned text of the Computer-First Realm Act adopted by the Standing Committee at its second-draft stage, and (b) satisfaction of a redrafted commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, turning on a validated, locked V2 lawpack that **carries** the already-assented settlement together with an always-on deterministic kernel invariant rejecting any record lacking a valid assent source:
16. (1) Does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, while V1 remains the continuing Gazette and Archive estate, such that V1 asserts no continuing runtime control over V2 post-commencement lawmaking?
17. (2) Does the single central apex (Supreme Court) by this order direct the V1 courts to relinquish continuing appellate or supervisory control over V2 runtime matters, save the entrenched floor, such that V2 runtime adjudication proceeds in V2's own expressly constituted courts (odd benches, s. 10/s. 18) and not by V1 continuing jurisdiction?
18. (3) Is the CASE-LAW s. 10 court hierarchy carried into V2, and may the Court of Appeal lawfully be non-convened in the V2 MVP without express amendment of s. 10, or does its removal require a heightened amendment citing s. 10 by number? Must each V2 court be expressly incorporated or reconstituted by a named constituting instrument before any V2 order issues, the s. 12 hierarchy being aspirational until then?
19. (4) Is the Q8 assent doctrine (all V2 law requires Sovereign assent, specific or standing-bounded; AI may operate lawmaking machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; the kernel must reject any record lacking a valid assent source) the entrenched constitutional floor under all V2 lawmaking, amendable only by specific Sovereign assent to a primary Act, and binding the **delegate** not the **Sovereign**; and should it be entrenched by an express amendment giving it effect, citing the relevant articles by number, aligned to Bill 14 s. 12-13?

20. (5) Is advance Sovereign assent to "the final bill" lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that the Sovereign confirms, or does not dissent from, before commencement, and void if it operates as an automatic stamp on AI-emitted text, consistent with s. 32(2)?
21. (6) Is the four-branch mandate of Bill 27 s. 1 preserved for the public estate (s. 24 governing only V2 internal record organisation by an express savings clause), or expressly amended; and is express amendment by number required for any release of the public estate?
22. The Bill remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text. The companion YAML records remain excluded and may be minted only in the V2 lawpack after lawful commencement.
7. **RATIO OF THE PRIVY COUNCIL**
8. The Council settles the following propositions at first-instance level, as the definition and frame that bind the route to the Committee and the apex. The entrenching settlement (the amendment of CASE-LAW s. 10/s. 22, the entrenchment of the assent rule, and the realm-wide handover order) is expressly reserved to the Supreme Court on leapfrog.
1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the V2 machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the V1 route), and the lawpack is the **compiled form** of an already-assented settlement, never the generator of the Act's own authority. There is no authority vacuum on the text; the circularity in the draft s. 2 must be cured by sequencing.
2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)); it becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. The companion YAML records (decision, invariant, and the County Court order citing a non-existent V2 jurisdiction) are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.

3. Nothing crosses from V1 to V2 by implication, and nothing is displaced from the public estate by implication. Incorporation must be express, recorded, and state the mandatory kernel effect, and a lower-rank record may not incorporate V1 material of a rank it could not itself enact. The four-branch mandate of Bill 27 s. 1 is either expressly preserved for the public estate (by a savings clause confining s. 24 to V2 internal record organisation) or expressly amended by section number; silent displacement is void (Bill 27 s. 14(2); the Amendment Procedure; the Thoburn rule).
4. Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive s. 9 automatically. But no V2 court continues by mention in an authority-hierarchy list; each V2 court must be expressly incorporated or reconstituted with an odd bench (s. 10, s. 18) before any V2 order issues, on pain of void-ab-initio nullity ([2026] REALM-PC 14, REALM-PC 15). The s. 12 hierarchy is aspirational until then; removing the Court of Appeal requires express amendment citing s. 10, or recasting as administrative non-convening.
5. The Sovereign-assent rule is declaratory of existing binding law and AI is never sovereign. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14); AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 3(3), s. 9, s. 12; REALM-SC 8; REALM-PC 12). A standing-bounded route may make only subordinate law within its fixed, machine-checkable scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The kernel-rejection of any record lacking a valid assent source must be a deterministic, always-on invariant, and its existence and passing is a condition of commencement. Entrenchment is the precondition of lawful self-governance, not a defect in it; the Observer's "paradox" is none, the lock binding the delegate and never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act.
6. Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves Q1-Q8, honours the confirmed limits, and incorporates the Supreme Court's settlement, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void, that being the very AI-self-authorising-law hazard the migration exists to prevent.

7. Publication is not force. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; V2 runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel need not and must not read the Gazette for runtime decisions (Bill 32 Part 10; Bill 8; Bill 22). Publication mechanics are best delegated to a Kernel Regulation under an express enabling clause that itself satisfies the Q8 declarations.
8. The new V2 citation series may be established by this Act on the Bill 16 precedent, but only by an express scheme-establishing provision; the Act's own V2 citation must be minted deterministically on the empty series at commencement, never hand-numbered, and V1 REALM-* citations remain valid historical identifiers ([2026] REALM-PC 11; Bill 16; CASE-LAW s. 19(5)).
9. Expressly reserved to the Supreme Court (full court of nine, on leapfrog): the amendment of CASE-LAW s. 10/s. 22 and any removal of the Court of Appeal tier; the entrenchment of the Q8 assent rule as a realm-wide CASE-LAW article aligned to Bill 14 s. 12-13; the binding realm-wide handover order directing the V1 courts to relinquish continuing control over V2 runtime matters; and the final settlement of the advance-assent mechanics under s. 32(2). The Privy Council has defined the questions and framed the limits; the apex must settle the handover and entrench the floor.
8. DISPOSITION
9. Standing and jurisdiction confirmed; the strike-out, per incuriam, and incompatibility motions refused; the eight questions DEFINED and answered provisionally as above; the seventeen limits CONFIRMED, save Limits 4, 5, and 13 CONFIRMED AS VARIED and Limits 3 and 17 confirmed with riders; the Q2 citation scheme and the Q8 Henry-VIII alignment requiring express drafting; the companion YAML records excluded as void ab initio; the advance assent held lawful only as a conditional grant pinned to a determinate final adopted text confirmed before commencement; and the matter certified to LEAPFROG to the full Supreme Court of nine on the six framed handover-order questions, the entrenched-court, assent-rule, handover, and advance-assent points lying beyond this Council's amending competence. Bill 32 remains a void first draft of no binding force until the Standing Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
10. --- Sumerly PC, delivering the judgment of the Privy Council (Blackmere PC, Goffe PC concurring as noted)

INDIVIDUAL OPINIONS OF THE COUNCIL (DELIVERED IN FULL)

BLACKMERE PC

11. I have the load-bearing text I need: Bill 32 in full, Bill 27's express-amendment entrenchment clause (s.14(2), at line 363), REALM-PC 12's ratio, and Bill 14's anti-Henry-VIII ceiling (s.12) and no-self-extension rule (s.3(3)). This is sufficient for a textualist opinion. I do not need to read further; my method turns on the words already before me.
 12. I am writing my individual opinion now.
 13. OPINION OF BLACKMERE PC
 14. *In the Privy Council of the Vibe Justice System (the distinct central constitutional first-instance court, [2026] REALM-PC 15). Three Counsellors sit. In the matter of Bill 32, the Computer-First Realm Act 2026 (void first draft).*
 15. I am the textualist. I begin and end with the enacted words. Where the text is plain it governs and no purpose, however attractive, displaces it; where it is ambiguous I read the enacted history before any extrinsic aid; and where one instrument is said to alter another, I require the alteration to be express, because supersession and amendment by implication are, on the plain words of this constitution, void.
1. PRELIMINARY: standing, jurisdiction, and route
 2. Standing and route are sound, on the words. Bill 32 is styled on its own face a "VOID FIRST DRAFT - Drafted by Lexby, as counsel and engineer, without independent law-making force." That label is not mere modesty; it is the correct legal characterisation under CASE-LAW s. 3(3) ("Lexby-authored instrument-text ... is VOID as an instrument from issue") and the binding ratio of [2026] REALM-PC 12 and [2026] REALM-SC 8. I have read the PC 12 ratio. Its words are exact: such text "is admissible as a void FIRST DRAFT that leapfrogs into the Standing Committee's SECOND-DRAFT stage," and "ADOPTION BY THE PROPER ORGAN CURES the origin defect." The draft is therefore properly before a competent organ, and the Privy Council may define questions and rule the principle, but may not legislate the instrument text ([2026] REALM-SC 8, which "RULES the principle and DIRECTS the Standing Committee to draft" but "does not legislate the text itself"). I hold us to that limit precisely.
 3. Jurisdiction is sound. CASE-LAW s. 14 commits to VJS "decisions, forks, design questions" in an AI-assisted engineering project; the migration of the realm's own legal substrate is the paradigm of such a question. [2026] REALM-PC 15 fixes this Council as "a DISTINCT central constitutional/governance first-instance court ... sitting CENTRALLY for realm matters." The signature is satisfied by substance, not label. I would reject any strike-out for want of standing or jurisdiction.

4. One per-incuriam caution. The reference lists the governing authorities, so no fresh-sitting objection lies (s. 11(e)). But I record a textual reservation that bears on everything below: the bracketed framing of this reference recites that Bill 32 declares "VJS V2 the sole runtime authority surface." The Bill's own words (s. 12, s. 14) are narrower. I construe the Bill, not the gloss.
2. THE EIGHT QUESTIONS
3. Q1 - BOOTSTRAPPING
4. Definition. Does a constitutional Act that supersedes V1 as live law and names a not-yet-existing infrastructure as its runtime surface lawfully **commence** before that infrastructure exists; or must the infrastructure precede commencement?
5. Answer (textual). The Act answers itself. s. 2(1) provides that "This Act commences **only when**" five conditions are satisfied, including (ii) lawpack validation, (iv) lawpack entry, and (v) lock inclusion. s. 2(2): "Before commencement, this Act is a draft and has no binding runtime force." s. 2(3): "The kernel shall not treat this Act as live authority until all commencement requirements are satisfied." On the plain words there is no paradoxical "authority vacuum." Enactment (Royal Assent) and commencement (condition satisfaction) are textually distinct events, and the Act binds nothing until its own stated conditions fire. The Observer's "circularity" objection reads a contradiction the text does not contain: the infrastructure is a **commencement condition**, not a **condition of validity of the enactment**. There is nothing unlawful in an Act that lies dormant until the world catches up to it; that is the ordinary mechanic of deferred commencement.
6. I therefore answer: the Act may lawfully be enacted before the infrastructure exists, but may not lawfully commence before it. No transitional bridge is needed to cure a defect that the text already forecloses. Provisional answer: enact-first with deferred commencement, on the express conditions in s. 2. I note for completeness that nothing turns on which repository holds the infrastructure; s. 2 speaks of lawpack validation and entry, not of a directory location, and a path name "does not create legal force" (s. 24(4)).
7. Q2 - CITATION SCHEME TRANSITION
8. Definition. By what lawful mechanism is a new V2 primary-legislation citation scheme ([2026] VJS-ACT N) introduced alongside the V1 REALM-* scheme: by this Act, or by a separate instrument?

9. Answer (textual + enacted history). The text is presently **insufficient**. s. 1(3) merely **proposes** "[2026] VJS-ACT 8"; it does not enact a scheme. Bill 16 is the enacted history on all fours: the realm's citation provenance scheme is the creature of an express enacting instrument (Bill 16, which itself effected the LEXBY-*** to REALM-*** transition). CASE-LAW s. 11(d) records the REALM-*** codes "as implemented by Bill 16." A new primary-legislation series is a scheme-level change and, on the Bill 16 precedent, must be **expressly established**, not assumed by a single proposed citation slot.
10. Provisional answer. A constitutional Act of this magnitude may establish the V2 scheme **within itself** (Bill 16 is precedent that an Act may carry a scheme), but only if it does so expressly: by an operative section stating the series code, the form [YEAR] VJS-ACT N, the minting rule, and the express preservation of REALM-*** citations as valid historical identifiers (which s. 23(3) already foreshadows). The present draft does not do this. The Committee must add an express citation-scheme section or recite a companion instrument. I would not leave the scheme to be inferred from s. 1(3); inference is the precise vice this constitution forbids.
11. Q3 - BILL 27 FOUR-BRANCH MANDATE
12. This is the textualist's question, and here I part company with the Claimant.
13. Definition. Does Bill 32 s. 24 amend Bill 27's four-branch mandate by implication, or must the amendment be express?
14. Answer. I have read Bill 27 in the original. Its s. 14(2) is express and controlling: **"The four-branch layout mandate (section 6) and the system-data-only rule (section 7) are foundational to CASE-LAW s. 1 and s. 9 and may not be silently repealed or relaxed by implication. Any amendment must be express."** That is a Thoburn-style entrenchment of the mandate, enacted by an in-force Act of the Realm (Royal Assent 2026-06-06).
15. Bill 32 s. 24 nowhere cites Bill 27 by number. It says only that "V2 does not carry forward the V1 four-branch ministry directory structure as mandatory runtime structure." On the plain words, s. 24 as drafted is an attempt to relax a mandate that its own parent provision forbids relaxing other than expressly. Two textual escapes are urged and I address each.

16. (i) *That s. 24 binds only V2 and Bill 27 binds only "the public VJS," so there is no conflict.* This is the strongest reading and I accept it *to a point*: Bill 27 s. 6 by its terms mandates the layout for "the public realm repository." If V2 is a genuinely distinct jurisdiction-repo, Bill 27's directory mandate does not reach into V2's internal record layout, just as [2026] REALM-PC 17 holds that a local jurisdiction "may amend local law ... by express local act." But that reading does not rescue s. 24 as drafted, because (a) Bill 32 by s. 26 and the single-Gazette scheme keeps V2 publishing *into the V1 public realm*, where Bill 27 plainly bites; and (b) the four-branch layout is, on Bill 27's own words, "foundational to ... the separation of powers" and is reflected in CASE-LAW s. 1's open-justice command, not a mere file convention. A provision that purports to declare the public realm's foundational layout "not mandatory" for the realm's live runtime law engages the mandate directly.
17. (ii) *That s. 24(4) ("a path name does not create legal force") is consistent with REALM-PC 14 (substance over file-presence).* I accept that proposition standing alone, and it is good law. But REALM-PC 14 decided that the *.gitignore is evidence not constitution*; it did not licence the *repeal of an expressly entrenched layout mandate by silence*. The two are different. Substance-over-form cuts against constitutive file-presence rules; it does not dissolve an express statutory mandate.
18. Provisional answer. s. 24 cannot stand as a silent relaxation. The Committee must choose one of two lawful routes and the text must say which: (a) express amendment of Bill 27 s. 6/s. 14(2), citing those sections by number per Bill 27's own amendment rule and CASE-LAW's Amendment Procedure, confined to excepting V2's *internal* runtime record layout while preserving the separation-of-powers principle and the system-data-only rule; or (b) preservation by incorporation, carrying the four-branch principle forward into V2 as an invariant under s. 11 and confirming Bill 27 continues to govern the V1 public realm and any V2 material published into it. What the text may not do is the thing s. 24 presently does: relax the mandate without naming it. I would VARY the draft accordingly.
19. Q4 - COURT CONTINUITY
20. Definition. Does s. 9's supersession of "the entire V1 legal system" supersede the *courts themselves*, or do they continue?

21. Answer (textual, and here the draft is internally contradictory). s. 9(2)(iv)-(v) expressly lists "the V1 court hierarchy" and "the V1 Court of Appeal" among the things superseded, and s. 9(5): "No V1 court ... continues as live V2 law unless expressly incorporated." Yet s. 12(1)(vi)-(viii) lists "Supreme Court Orders," "Privy Council Orders," and "County Court repo Orders" as live V2 authority tiers. On the words, the Act *abolishes the courts in s. 9 and then assumes their orders in s. 12.* That is a latent self-contradiction, and under the concordance rule the Act itself supplies (s. 6(4)), a material discrepancy is "a validation defect" that "shall be routed for correction." I so route it.
22. The deeper constitutional point is textual and decisive: the court structure is fixed by CASE-LAW s. 10 [constitutional] and the single-apex rule by s. 22(2) ("The singleness of the Court of Appeal and the Supreme Court may *never* be relaxed"). These are entrenched and "changeable only by express, deliberate amendment ... citing the article ... by its section number" (Amendment Procedure). A migration Act that, by a broad supersession clause, purported to dissolve the s. 10 / s. 22 apex courts would be an amendment of entrenched articles by implication, and void to that extent (CASE-LAW s. 1: case law and, a fortiori, an Act read against entrenchment, "is void to the extent it conflicts"; the Thoburn rule).
23. Provisional answer. s. 9 cannot lawfully supersede the s. 10 court structure or the s. 22 single central apex by implication, and I would read it as not doing so: supersession bites on V1's *live rule-making and runtime force*, not on the courts' entrenched constitutional existence. The courts continue by force of CASE-LAW s. 10 / s. 22, which Bill 32 does not, and could not by implication, amend. The Committee must (i) excise "the V1 court hierarchy" and "the V1 Court of Appeal" from the s. 9 supersession list, or expressly confine them to "as runtime *sources*," and (ii) provide either express incorporation of the courts into V2 under s. 11 or an express V2 court-establishment provision conformable to s. 10 / s. 18 / s. 22. I note the Charter's statement that "Court of Appeal not carried forward in V2 MVP": if V2 genuinely intends to drop a tier, that is an amendment of entrenched s. 10 and s. 22 and requires *express* amendment citing those sections, not an MVP design choice. It cannot be done by omission.
24. Q5 - EXPRESS INCORPORATION MECHANICS
25. Definition. What is the minimum valid act of express incorporation under s. 11; and must the record state the kernel effect?

26. Answer (textual). s. 11(2) is a closed list: incorporation "may be made **only** by" Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, or Invariant. The word "only" is exhaustive; any one of the seven suffices, so a Kernel Regulation, Rule Atom, or Invariant is a valid vehicle. But the **content** requirement is conjunctive: s. 11(3) provides incorporation "**must** identify" all five of (i) V1 source, (ii) V2 destination, (iii) operative rule, (iv) kernel effect, and (v) any supersession/variation. The text answers the sub-question directly: the kernel effect is mandatory. Identification of source and operative rule alone is **insufficient** on the plain words of s. 11(3)(iv).
27. One textual caveat. The vehicle must match its own competence. An **Invariant** or **Kernel Regulation** may incorporate V1 material only within whatever authority the (still-to-be-built) V2 framework gives that record type; it cannot, consistently with Q8 below, incorporate material that itself amounts to new primary or entrenched law, for that would let a delegated record do what only an assented Act may do. Provisional answer: any of the seven s. 11(2) vehicles suffices for incorporation within its competence; all five s. 11(3) elements, including the kernel effect, are mandatory; identification of source and operative rule alone does not suffice. I would CONFIRM s. 11 as drafted on this point; it is the soundest clause in the Bill.
28. Q6 - THE SINGLE GAZETTE
29. Definition. Are the five propositions of the single-Gazette doctrine lawful?
30. Answer (textual). The Bill's Part 10 is internally coherent and consistent with the enacted instruments. I confirm each on the words: (1) one Gazette, two estates is lawful, the Gazette being "the public record of the Realm" (Bill 8) carrying system data only (Bill 22; Bill 27 s. 7), and publication being a distinct act from enactment; (2) s. 26(7)-(8) expressly provide that V2 publication "is not enactment by V1" and "is not incorporation into V1," which is correct because force and publication are different events (the Bill's own Schedule 4: "they do not share the same source of force"); (3) s. 26(6), (12): runtime force is the lawpack, not the Gazette, confirmed; (4) s. 26(10): typed lineage edges, lawful and indeed required by the no-implication rule so the chain is explicit; (5) s. 26(11): the kernel "does not depend on reading the Gazette," confirmed, and consistent with s. 13 (the kernel "may not ... search by semantic similarity").

31. Provisional answer: CONFIRM all five. I add one textual rider on the referral's sub-question F (whether s. 27 mechanics belong in a primary Act or a delegated Kernel Regulation): export mechanics are subordinate, machine-checkable detail and may lawfully be delegated to a Kernel Regulation under an **express** enabling clause in the Act, provided that delegation satisfies Q8 (it must declare maker, scope, form, validation, review, commencement: s. 31). The **principle** of the single Gazette stays in the primary Act; the **packet mechanics** may descend.
32. Q7 - CONSTITUTIONAL RELAY AND SELF-GOVERNANCE
33. Definition. May V1 lawfully authorise V2 to supersede V1 as live runtime law and self-govern thereafter, with the V1 process becoming provenance?
34. Answer (textual + s. 9 of CASE-LAW). The relay is lawful in principle and the source of authority is correctly located. CASE-LAW s. 2 vests in the Sovereign the power to "make or unmake any law by due process," and s. 9(3) (added by Bill 30) confirms a jurisdiction "may, by express local sovereign act, amend its local law, create or remove local courts ... become independent." A migration that runs **through** the V1 organs (this reference, Committee draft, Sovereign assent) is the "due process" s. 2 requires. I confirm: (1) V1 may so authorise V2; (2)-(4) the V1 founding process is provenance, not daily runtime law, and V2 self-governs through its native route after commencement; (5) V1 remains Gazette and Archive.
35. The Observer's "perpetual constraint" objection I reject on the text. The objection says the embedded assent rule (s. 30(3), s. 31(3)) makes V2 "not genuinely self-governing." That misreads "self-governing." The text of s. 31(3) provides the assent rule is "amendable only by **specific Sovereign assent to a primary Act**." V2 is not locked; it is locked **against delegated self-amendment**, while remaining fully amendable by the Sovereign. That is not a defect in self-governance; it is the definition of a constitution. A jurisdiction that could rewrite its own assent rule by delegated machinery would not be self-governing but ungoverned. Provisional answer: CONFIRM all five elements of the relay, subject to Q4 (the courts cannot be relayed away by implication) and the leapfrog point below (an express SC handover order is the cleanest instrument to stop V1 asserting continuing control, and I would obtain one).
36. Q8 - SOVEREIGN ASSENT FOR AI-MADE OR DELEGATED LAW
37. Definition. Must all V2 law (including AI-drafted or delegated) carry Sovereign assent, specific or standing-bounded; and are the four sub-limits and the proposed doctrine sound?

38. Answer (this is the most important question, and the text and the enacted history align completely). The proposed doctrine is, in substance, the codification of binding law already on the books:
39. - CASE-LAW s. 3(2)-(3): Lexby "holds NO law-making ... authority" and Lexby-authored instrument-text "is VOID as an instrument from issue."
40. - CASE-LAW s. 2: legislative power is the Sovereign's, by due process.
41. - Bill 14 s. 3(3): "A delegated power may not be used to widen its own scope ... A purported self-extension ... is ultra vires and void." Bill 14 s. 12 (anti-Henry-VIII): "There is no power, express or implied, to amend primary or entrenched law by a delegated instrument."
42. - [2026] REALM-PC 12 / [2026] REALM-SC 8: "adoption by the proper organ is constitutive"; the test is "the SOURCE OF THE ARTEFACT'S FORCE."
43. Against that enacted history the proposed doctrine is not novel constitution-making; it is declaratory of existing binding law applied to a new (AI/computational) maker. I confirm each limb on the words: (1) all V2 law requires Sovereign assent, specific or standing-bounded (s. 30(1)-(2)); (2) AI may operate machinery but may not be sovereign, expand competence, amend the assent rule, or create force from its own output (s. 30(4) read with Bill 14 s. 3(3), s. 12, CASE-LAW s. 3(3)); (3) a delegated body must declare maker/scope/prohibited subjects/form/validation/review/commencement (s. 31(1), which mirrors and is stricter than Bill 14's ceiling, and is sound); (4) the assent rule is amendable only by specific Sovereign assent to a primary Act (s. 31(3), matching Bill 14 s. 12 and the Amendment Procedure); (5) the kernel must reject any record lacking a valid assent source (s. 30(6), s. 13(3) "the kernel may not ... create legal force by computation alone").
44. One textual sharpening I require. "Standing bounded assent" (s. 30(2)(ii)) is lawful **only** if it does not in substance become a Henry-VIII delegation. Bill 14 s. 12 forbids any delegated instrument amending "primary or entrenched law." The doctrine must therefore state expressly that a standing-bounded route may make only **subordinate** law within its fixed scope, and may never reach the carve-out subject-matter (the assent rule, the constitution, primary or entrenched Acts). s. 30(3) already says most of this; the Committee should align its wording to Bill 14 s. 12-13 by number so the ceiling is express, not inferred.
45. Provisional answer: CONFIRM the Q8 doctrine in full, as declaratory of CASE-LAW s. 2-3, Bill 14 s. 3(3)/s. 12, and REALM-PC 12 / REALM-SC 8, with the express Henry-VIII alignment above. This is the constitutional spine of the whole migration and is, in my view, its soundest part.

3. THE SEVENTEEN LIMITS

4. I take them as drafted and state CONFIRM or VARY with the textual reason.

5. - 1 (constitutional Act, Royal Assent, not delegable): CONFIRM. Matches s. 32(2), CASE-LAW s. 2, Bill 14 s. 12.

6. - 2 (V1 superseded as live law, not destroyed; Gazette/Archive/citations/evidence preserved): CONFIRM. s. 10, Schedule 2.

7. - 3 (no import by implication; incorporation express and recorded): CONFIRM emphatically. s. 9(4), s. 11. This is the textualist's own principle.

8. - 4 (four-branch either expressly amended or preserved by incorporation, not displaced by implication): CONFIRM the limit, VARY the draft. The *limit* is exactly right and is precisely what Bill 27 s. 14(2) commands. But s. 24 as drafted *violates* the limit by displacing the mandate by implication. The Committee must conform s. 24 to limit 4 (see Q3).

9. - 5 (court hierarchy continues by incorporation or is separately reconstituted): CONFIRM the limit, VARY the draft. s. 9 as drafted breaches it by listing the courts among superseded items. Conform per Q4. Add: any reconstitution must satisfy s. 10 / s. 18 / s. 22 (odd benches, single central apex).

10. - 6 (computer-first does not abolish human-readable law; only requires live law be machine-checkable): CONFIRM. s. 4(4), s. 5(1), s. 6.

11. - 7 (kernel is a clerk, not legislator or court): CONFIRM. s. 13(3); CASE-LAW s. 3 by analogy; the kernel is the deterministic-gate engineering artefact, not a source of force.

12. - 8 (Lexby advocate/advisor/engineer, not source of force): CONFIRM. s. 20; CASE-LAW s. 3(2)-(7); REALM-PC 12.

13. - 9 (public/private boundary preserved): CONFIRM. s. 21; Bill 22; REALM-SC 9; REALM-PC 18.

14. - 10 (real-world law unaffected; external supremacy floor): CONFIRM. s. 22; REALM-SC 9.

15. - 11 (one Gazette, two estates; publication does not create force): CONFIRM. Part 10 (Q6).

16. - 12 (V2 may publish into the single Gazette while deriving force from lawpack/kernel-recognised status): CONFIRM. s. 26(6), s. 29(3).

17. - 13 (V2 self-governing successor for runtime purposes; not required to use V1 machinery): CONFIRM, subject to the entrenched-court reservation (Q4) and Q8 (the assent rule is not optional machinery; it binds V2).

18. - 14 (V1 founding process is migration provenance, not daily runtime law): CONFIRM. s. 28(4)-(5).
19. - 15 (all V2 law requires Sovereign assent, specific or standing-bounded): CONFIRM. s. 30; Q8.
20. - 16 (AI may operate machinery but not be sovereign / expand competence / amend assent rule / create force from own output): CONFIRM. s. 30(4), s. 31; Bill 14 s. 3(3), s. 12.
21. - 17 (kernel must reject any record claiming binding force without a valid assent source): CONFIRM. s. 30(6), s. 13(3).
22. Net: fifteen confirmed as drafted; limits 4 and 5 confirmed in principle but the Bill text must be VARIED (s. 24 and s. 9) so the drafting matches the limits and obeys the express-amendment rule. Q2's citation scheme and the Henry-VIII alignment in Q8 also require express drafting additions.

4. THE ADVANCE ASSENT

5. The Sovereign has stated: "assent is given to the final bill." I address its lawfulness as a question of law, not preference.
6. It is lawful, but only as an **advance and conditional** assent that does not attach until the final text exists and is fixed. The reasons are textual. CASE-LAW s. 2 makes the Sovereign the maker of law "by due process." Royal Assent is the constitutive act (Bill 2 s. 21; REALM-PC 12: "an instrument carried by Committee vote + Royal Assent ... STANDS"). Assent is, by its nature, assent **to a text**: it is the organ's constitutive act on a determinate instrument. An assent to a text that does not yet exist cannot, at the moment of utterance, be the constitutive act, because there is as yet nothing determinate to be constituted. To hold otherwise would let assent operate as a "blank cheque," which is precisely the self-authorising vice that Q8, Bill 14 s. 12, and CASE-LAW s. 3(3) forbid: it would let the **drafter** (the Committee, advised by AI) settle the operative words and have them bind by force of a pre-given signature the Sovereign attached before seeing them.
7. Therefore the advance assent is valid only if the "final" text is **bound** so that the assent is meaningful. On the words of the very doctrine being settled (s. 30(2): standing-bounded assent requires a route "whose maker, scope, form, validation, review, and commencement conditions are fixed"), the same discipline must govern this advance assent. The final text is sufficiently bound if and only if:
 1. it is the product of the **fixed lawful route** the Sovereign directed (this PC definition -> SC settlement -> Committee second-draft adoption), and no other;

2. it conforms to the **defined scope** settled by the court (the eight questions and seventeen limits as confirmed/varied), so that the Committee may draft **within** but not **beyond** that frame;
3. it carries the matters s. 32 itself reserves (this Act requires **specific** Sovereign assent), so the advance grant is read as the Sovereign's specific assent to **this** instrument once finalised, not a standing route for future instruments; and
4. the finalised text is **presented back** and the assent confirmed against it before commencement, because s. 2 in any event withholds runtime force until the conditions fire, giving a natural and lawful moment at which the bound final text and the assent meet.
5. So bound, the advance assent is not a blank cheque; it is a **conditional specific assent** to a text whose content is fixed by the court's frame and the directed route. So unbound, it would be ultra vires as an attempt to assent to whatever words later appear, and Lexby's s. 2 duty would be to push back and route the final text for confirmation. I would record that the advance assent is lawful as a conditional specific assent, the conditions being the court-settled frame, the directed route, and presentation of the final text before commencement. This also coheres with s. 32: the Act's own saving demands specific assent to **this** Act, which an unbound blank cheque would not supply.
5. LEAPFROG
6. Yes. This matter should leapfrog to the Supreme Court. Three textual grounds compel it. First, the matter squarely engages entrenched articles, CASE-LAW s. 10 and s. 22 (court structure and single apex) on Q4, and the foundational assent rule on Q8, and the Amendment Procedure requires that entrenched articles be amended "only by ... a Supreme Court judgment convened specifically to address the constitutional article." A Privy Council of three cannot settle an amendment of s. 10 / s. 22; only the Supreme Court can, and for a constitutional question it sits as the full nine (s. 10; s. 18). Second, s. 13 reserves the leapfrog to "the Principal's express leapfrog certificate," and the record shows the Principal has directed the matter be driven through PC and SC; s. 20(2) confirms the certificate is properly issued for "a genuinely constitutional or foundational question." This is the paradigm case. Third, only the Supreme Court "can enact CASE-LAW articles directly" (REALM-SC 8) and can issue a binding realm-wide handover order that stops V1 asserting continuing control (referral G, H).
7. The precise handover-order questions the Supreme Court should answer:

1. Court continuity (the entrenched question). Does s. 9's supersession reach the entrenched s. 10 court structure and the s. 22 single central apex; and if those courts continue, do they continue into V2 by express incorporation (s. 11) or by their inherent entrenched status, and on what terms must V2 reconstitute any tier (including whether dropping the Court of Appeal in the "V2 MVP" requires express amendment of s. 10 / s. 22 citing those sections)?
2. The assent rule (foundational). Confirm or vary the Q8 doctrine as a realm-wide CASE-LAW article (the Sovereign-assent rule for AI-made and delegated law), expressly aligned to Bill 14 s. 12-13, and declare that it binds V2 from commencement and is amendable only by specific Sovereign assent to a primary Act.
3. The advance assent. Determine the conditions under which the Sovereign's advance assent to "the final bill" lawfully attaches, consistent with s. 32 and the assent rule it settles.
4. The handover and self-governance frame. Issue the order that, upon satisfaction of s. 2's commencement conditions, V2 becomes the self-governing computer-first successor jurisdiction for runtime purposes while V1 remains the continuing Gazette and Archive estate, with V1's process captured as provenance, subject to (1)-(3) above.
5. I would define the eight questions and confirm/vary the limits as above at this tier, then leapfrog these four questions up, because the parts that touch entrenched articles are beyond this Council's amending competence and must be settled by the organ that holds it.
6. RATIO
7. I would have the following propositions bind:
 1. Enact-first, commence-later is lawful. A constitutional migration Act may be enacted before its runtime infrastructure exists, but does not commence and binds nothing until its own expressly stated commencement conditions are satisfied (Bill 32 s. 2; deferred commencement). The infrastructure is a condition of *commencement*, not of *validity of enactment*; there is no authority vacuum on the text.

2. No relaxation of an entrenched mandate by implication. Where a prior Act expressly entrenches a rule against relaxation otherwise than by express amendment (Bill 27 s. 14(2): the four-branch mandate "may not be ... relaxed by implication; any amendment must be express"), a later Act that purports to relax it without citing it by section number is, to that extent, void; the relaxation must be express (CASE-LAW s. 1, Amendment Procedure; the Thoburn rule). Bill 32 s. 24 as drafted offends this and must be varied to an express amendment or a preservation-by-incorporation.
3. Entrenched courts are not superseded by a broad clause. A general supersession of "the V1 legal system" cannot amend by implication the entrenched court structure (CASE-LAW s. 10) or the single central apex whose singleness "may never be relaxed" (s. 22(2)); supersession bites on live rule-making and runtime force, not on the courts' entrenched existence. Dropping or altering a tier requires express amendment of s. 10 / s. 18 / s. 22 citing those sections, enacted by the organ competent to amend entrenched law (the Supreme Court / the Sovereign).
4. Express incorporation is conjunctive. Under Bill 32 s. 11, any of the seven enumerated record types may incorporate V1 material within its own competence, but the incorporating record must state all five elements, including the kernel effect; identification of source and operative rule alone does not suffice.
5. The Sovereign-assent rule is declaratory of existing binding law. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded; AI may operate lawmaking machinery but may not be sovereign, expand its own competence, amend the assent rule, or create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 3(3), s. 12; REALM-PC 12, REALM-SC 8). A standing-bounded route may make only subordinate law within its fixed scope and may never reach the assent rule, the constitution, or primary or entrenched Acts.
6. Advance assent binds only a bound text. The Sovereign's advance assent to "the final bill" is lawful as a *conditional specific assent* that attaches only to a final text fixed by the court-settled frame, produced through the directed lawful route, and confirmed against the finalised words before commencement (s. 2, s. 32). An advance assent to an unbound text would be a blank cheque, ultra vires, and is the self-authorising vice the assent rule itself forbids.
7. Publication is not force. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; V2 runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel need not read the Gazette (Bill 32 Part 10; Bill 8; Bill 22).
7. DISPOSITION

8. The eight questions are defined and answered as above; fifteen limits are CONFIRMED and limits 4 and 5 are CONFIRMED in principle but the Bill text (s. 24 and s. 9) must be VARIED to obey the express-amendment rule; the Q2 citation scheme and the Q8 Henry-VIII alignment require express drafting; and the matter is certified to leapfrog to the Supreme Court on the four enumerated handover questions, the entrenched-court and assent-rule points lying beyond this Council's amending competence.

9. --- Blackmere PC

10. ---

SUMBERLY PC

11. The factual record is confirmed: the V2 lawpack, kernel, charter, and constitution exist only in the separate private repo the V2 repository; the V1 super-repo where Bill 32 is filed has no lawpack/ directory; the HANDOVER is reclassified draft_implementation_brief. I have everything I need to write a formalist opinion.

12. IN THE PRIVY COUNCIL OF THE VIBE JUSTICE SYSTEM

13. (the distinct central constitutional first-instance court, [2026] REALM-PC 15)

14. In the matter of the Computer-First Realm Act 2026 (Bill 32, void first draft)

15. OPINION OF SUMBERLY PC

16. I have read the symmetric file: the Claimant brief, the Observer brief, the committee referral, the void first draft in full, and the founding authorities. The Defendant returned no brief; under s. 19(1) I treat the adversarial arsenal as nonetheless deployed, taking every available strike-out, per incuriam, and incompatibility point on my own motion as the formalist seat requires, so that the absence of a Defendant brief works no procedural advantage to the proponent. I write formally. Procedure here is not decoration. It is the substance of the guarantee, because the entire merit of this migration is the claim that V2 will be legitimate, and legitimacy is a question of route before it is a question of content.

1. PRELIMINARY: standing, jurisdiction, route, and the void-first-draft doctrine

2. Standing. The reference is placed by the Sovereign, acting as Sovereign, and reduced to the filed record by Lexby as registrar and engineer (s. 3; s. 18(4) by analogy). Standing is satisfied at the threshold (s. 11(b)). The matter is a governance and design question at the constitutional core of VJS, squarely within subject-matter jurisdiction (s. 14). I reject any strike-out for want of standing or jurisdiction.

3. The correct first-instance court. This is properly seated. The super-repo is the realm-as-state, not a County Court ([2026] REALM-PC 15; [2026] REALM-SC 6). The central Privy Council is the s. 10 First-Instance tier sitting centrally for realm matters, and it is the correct organ to *define questions and confirm or vary limits* on a first-impression constitutional reference. I record, as a formalist, that the Privy Council's competence here is to rule the principle and frame the route, not to settle realm-wide entrenched statute: only the Supreme Court enacts realm-wide (s. 9), and a matter destined to change CASE-LAW must be *reached* by progression or by the Sovereign's leapfrog certificate (s. 13). This bears directly on disposition (Part 5).
4. The void-first-draft doctrine, applied exactly. Bill 32 is, on its own face, Lexby-authored instrument text. Under [2026] REALM-PC 12 and [2026] REALM-SC 8 it is void as an instrument from issue (s. 3(2)-(3)): it carries no self-executing force, being the product of counsel, not of the law-making organ. That nullity is not a defect to be cured by this Council; it is the correct and lawful status of the artefact at this stage. The draft is admissible as a void *first* draft that leapfrogs to the Standing Committee's *second*-draft stage (s. 3(4)); adoption by Committee vote with Royal Assent is constitutive and cures the origin defect, spent on adoption (s. 3(5)). The governing test is the source of the artefact's force: function (engineering, Lexby's) versus promulgation by an organ (law, never Lexby's on its own account) (s. 3(6)).
5. I make three formal points the proponent must not be permitted to elide.
6. First, the void-first-draft doctrine is a procedural guarantee, not a procedural inconvenience. The whole purpose of Bill 32 is to inoculate V2 against AI self-authorising law. It would be a self-refuting irony if the migration instrument itself were treated as anything other than a void draft until the proper organ adopts it. The status of Bill 32 *as a void draft* is the first proof of the very doctrine it proposes. I therefore reject, in advance, any framing (in the Claimant's procedural motions or elsewhere) that this Council is being asked to "confirm Bill 32" as if it were already an instrument. It is not. We define questions and frame limits for the Committee and, on escalation, the Supreme Court.
7. Second, the companion YAML records (decision, invariant, County Court order) are void ab initio and must not enter this V1 repo. I confirm committee referral item E without qualification. A County Court order citing jurisdiction the V2 repository is a ruling from a court that does not exist in this repo: void ab initio under s. 18(5) and [2026] REALM-PC 14 (formation is a substance rule; a ruling from a non-existent seat is a nullity). These are premature, reference an unenacted Act, and may be minted only in the V2 lawpack *after* lawful commencement. The factual record confirms they presuppose infrastructure absent from this repo.

8. Third, the reclassification of the HANDOVER to draft_implementation_brief is the correct and necessary act, and I would have ordered it had it not already been done. I have verified that the V2 lawpack, kernel, charter, and constitution exist only in the separate private repo and that this V1 super-repo has no lawpack/ directory. The HANDOVER is not authority and not a lawpack record. Good.
9. Per incuriam. The reference identifies the full governing corpus (Bills 1, 2, 10, 14, 16, 27, 30; CASE-LAW ss. 2, 9, 10, 13, 18, 22; REALM-SC 8, 9; REALM-PC 12, 14, 15, 17, 19). The Council sits on complete notice. No per incuriam objection lies and no fresh sitting on want-of-notice grounds is required.
2. THE EIGHT QUESTIONS: definition and provisional answer
3. I take each in order. For each I state how I would **define** the question (the formalist's first duty: fix the issue before answering it) and give a provisional answer with reasons.
4. Q1 - BOOTSTRAPPING
5. As I would define it. Not "may the Act commence without infrastructure" (which conflates enactment with commencement) but: **May a constitutional Act be lawfully ENACTED (Royal Assent) when its operative subject-matter does not yet exist in the repository, with commencement DEFERRED to conditions in s. 2; and is there any constitutional bar to enactment-before-infrastructure as opposed to infrastructure-before-enactment?**
6. Provisional answer. Enactment and commencement are distinct constitutive acts, and the distinction disposes of the apparent paradox. An Act may receive Royal Assent and yet not commence until its own stated conditions are satisfied (Bill 2 permits deferred commencement; s. 2 of the draft expressly so provides). There is no constitutional bar to a declaratory constitutional Act with deferred commencement, and the formalist objection (build-first) is a prudential preference, not a rule of law.

7. But I insist on one formal correction the proponent's brief understates. The s. 2 commencement conditions, as drafted, are circular as written: they require validation "by the VJS lawpack validator," entry "into the V2 lawpack," and inclusion "in the current lawpack lock," all of which presuppose the very V2 infrastructure whose lawful existence is in question. A condition that can only be met by an artefact whose own legitimacy derives from the Act is a bootstrap that closes on itself (the Observer's strongest conceded point; I adopt it as sound). The cure is to sequence the conditions so that the legitimating act is wholly antecedent and external: (a) Royal Assent (V1 organ); then (b) a recorded act *bringing the V2 infrastructure into existence in the repository of record under the assent*, distinct from and prior to (c) lawpack validation, entry, and lock. The V2 validator may confirm form; it may never be the source that confirms legitimacy, on pain of the kernel certifying its own warrant. I would frame Q1 to the Committee/Supreme Court as requiring an express commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone.
8. Q2 - CITATION SCHEME TRANSITION
9. As I would define it. *By what instrument is the V2 primary-legislation citation scheme [2026] VJS-ACT N lawfully established alongside V1's REALM-*; and does an Act that proposes its own citation in the new scheme validly mint that scheme?*
10. Provisional answer. Bill 16 is precedent on all fours for a scheme transition (it carried LEXBY-* to REALM-*); a citation scheme is established by an enacting instrument, deterministically minted, with prior citations preserved as valid historical identifiers ([2026] REALM-PC 11 on the deterministic engine; Bill 16). The scheme may be established either by this Act or by a companion instrument enacted simultaneously.
11. The formalist objection is to self-numbering bootstrap: Bill 32 proposes its own citation [2026] VJS-ACT 8 under a scheme the same Act purports to create. A citation must be *minted by the deterministic engine* under an *already-existing* scheme; an instrument cannot validly assign itself an ordinal in a series it is simultaneously founding, because the minting authority must precede the minted item. The clean route is that the scheme-establishing provision takes effect on commencement and the first VJS-ACT ordinal is minted deterministically at that point, the "8" in the draft being treated as a non-operative placeholder until the engine assigns it. I would have the Committee separate the scheme-establishment limb (or a companion instrument) from the self-citation, and forbid any self-assigned ordinal.
12. Q3 - BILL 27 FOUR-BRANCH MANDATE

13. As I would define it. *Does Bill 32 s. 24 amend Bill 27 s. 1 (the four-branch directory mandate for the public VJS) by implication, or must any displacement be by EXPRESS amendment citing Bill 27 by number; and is the four-branch mandate constitutional or ordinary for amendment purposes?*
14. Provisional answer. This is the question on which the formalist seat is most exacting. Amendment by implication is void (CASE-LAW Amendment Procedure; the Thoburn rule for entrenched articles; the reasoning of REALM-PC 12 Part I that a closed enumeration is not enlargeable by implication runs equally to silent contraction). Section 24, as drafted, says V2 "does not carry forward" the four-branch structure as mandatory runtime structure. If Bill 27 s. 1 *mandates* the four-branch layout for the public VJS, then s. 24 either (i) expressly amends Bill 27 s. 1, in which case it must cite Bill 27 s. 1 by number and state the variation, or (ii) does not touch Bill 27 at all, operating only on V2's *internal runtime record organisation* while Bill 27 continues to bind the V1 public VJS estate (including the public Gazette repo).
15. My provisional view favours (ii) as the lawful and narrower construction, *provided the draft is corrected to say so expressly*. There is no irreconcilable conflict, so no declaration of incompatibility lies (s. 11(f)): Bill 27 governs the public V1 estate's directory layout; s. 24 governs V2's internal runtime record-binding (by role, schema, id, status, authority, kernel effect). The two occupy different estates. But the draft must not be allowed to leave the relationship to inference. I would direct that s. 24 carry an express savings clause: "Nothing in this section amends or displaces Bill 27 s. 1, which continues to bind the public VJS estate; this section governs only V2 internal runtime record organisation." If, contrary to this, the Sovereign intends to *release* the public estate from the four-branch mandate, that requires an express amendment of Bill 27 s. 1 by number, and nothing less. I reject the Claimant's framing that s. 24 "does not amend Bill 27 as a matter of force" while simultaneously declining to carry it forward; that is precisely the silent-displacement the Amendment Procedure forbids. State the relationship expressly, both ways foreclosed.
16. Q4 - COURT CONTINUITY
17. As I would define it. *Does s. 9's supersession of "the V1 court hierarchy" dissolve the courts as constitutional institutions, or only supersede V1's substantive law as the runtime source; and if the courts are to exist in V2, by what express act are they constituted, given that court formation is a substance rule?*

18. Provisional answer. This is the gravest defect in the draft and the point on which a formalist will not yield. Court formation and existence are substance, not label or implication ([2026] REALM-PC 14; [2026] REALM-PC 15; s. 18). A ruling from a non-existent or improperly constituted court is void ab initio (s. 18(5)). The draft's s. 9(2)(4)-(5) supersedes "the V1 court hierarchy" and the "Court of Appeal" *as live law*, while s. 12 references "Supreme Court Orders, Privy Council Orders, County Court repo Orders" as V2 authority tiers. A court cannot continue by mere reference in an authority-hierarchy list. Either the courts are (a) expressly *incorporated* under s. 11 (identifying V1 source, V2 destination, operative rule, kernel effect) or (b) expressly *reconstituted* in V2 by a constituting instrument. Implied continuity is impermissible, because if the V2 bench is not lawfully constituted, every V2 order it issues is void ab initio, and the migration produces a jurisdiction whose courts are nullities. I note the Charter records that the Court of Appeal is *not carried forward in the V2 MVP*; that makes the point sharper, not softer: a deliberate non-carry-forward of one tier underscores that each surviving tier must be affirmatively constituted, not presumed.
19. I would therefore vary the draft to require an express court-constitution provision (whether in Bill 32 or a companion V2 constituting instrument) that names each V2 court, its bench size (odd, per s. 10/s. 18), and its jurisdiction, before any V2 order may issue. Until that provision commences, the V2 hierarchy in s. 12 is aspirational, not operative.
20. Q5 - EXPRESS INCORPORATION MECHANICS
21. As I would define it. *What is the minimum valid act by which V1 material acquires live V2 force under s. 11: must it be a full V2 Act, or may a lower record (Regulation, Rule Atom, Invariant) suffice; and what minimum content must the incorporating record state?*

22. Provisional answer. The s. 11 menu (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) is acceptable as to form, subject to one rank-floor the formalist must impose: a lower-rank record may not incorporate V1 material of a rank it could not itself enact. A Kernel Regulation derives from an Act and is bounded by it (Bill 14, the no-Henry-VIII ceiling); it cannot, by incorporating V1 constitutional material, do indirectly what it could not do directly. So constitutional or primary-Act-level V1 material requires incorporation by a V2 Act; subordinate V1 material may be incorporated by the corresponding subordinate V2 record. As to content, s. 11(3) already requires identification of V1 source, V2 destination, operative rule, kernel effect, and any supersession. I would hold the kernel effect mandatory, not optional: identification of source and operative rule alone is insufficient, because in a computer-first system a rule with no kernel effect is not in the runtime authority graph (s. 17(4) of the draft itself says so). Incorporation without a stated kernel effect is therefore incomplete and produces commentary, not live law. Confirm s. 11 with that rank-floor and that mandatory-kernel-effect gloss.
23. Q6 - THE SINGLE GAZETTE
24. As I would define it. *Is one Gazette with two estates lawful; does publication create or import force; is the Gazette the runtime source; and do the publication mechanics (s. 27) belong in a primary Act or a delegated regulation?*
25. Provisional answer. I confirm the five elements as sound and consistent with Bill 8, Bill 22, and Bill 27's public-mechanics, and with the established line that publication is distinct from the source of authority ([2026] REALM-PC 16 on the release/publication regime). Specifically: (1) one Gazette, two estates is lawful; (2) publication of V2 material in the Gazette is neither enactment by V1 nor incorporation into V1; (3) the Gazette is not the runtime source (the lawpack is); (4) typed lineage edges to V1 archive material are required where the relationship exists; (5) the kernel need not read the Gazette for runtime decisions. These honour the separation of the *publication layer* from the *authority layer*, which is the same discipline as the source-of-force test in REALM-PC 12.

26. One formal allocation point (committee referral F): the detailed publication mechanics in s. 27 are properly the subject of a delegated Kernel Regulation under an enabling clause, not primary-Act text. The primary Act should state the **principle** (one Gazette, two estates, publication is not force) and **enable** a regulation to carry the export-packet mechanics, validation gates, and redaction report. Putting operational export mechanics in a constitutional Act over-freezes them and offends the proportionate-allocation logic of [2026] REALM-PC 10 (the Committee's default act is to make SIs/regulations; fresh primary text is exceptional). I would frame Q6 to confirm the doctrine in the Act and remit the mechanics to a regulation made under it.
27. Q7 - CONSTITUTIONAL RELAY AND SELF-GOVERNANCE
28. As I would define it. **May V1 lawfully authorise V2 to supersede V1 as live runtime law through the proper route; is the V1 founding process provenance rather than runtime law; does V2 become self-governing on commencement; and is an express Supreme Court handover order needed to prevent V1 asserting continuing control?**
29. Provisional answer. The relay is lawful in principle: the Sovereign holds plenary power to make or unmake law by due process (s. 2), and re-settling the jurisdiction through V1's own organs is the exercise of that power, not a revolution. I confirm relay elements (1), (2), (4), and (5). On (3), self-governance "for runtime purposes," I confirm it subject to the entrenched floor in Q8: V2 may govern its **runtime** but it inherits an **assent rule it cannot itself unmake** (see Q8 and the Observer's conceded paradox, which I address head-on below).
30. The formalist refinement is on the "continuing control" question (committee referral G). V2 self-governance is not perfected merely by Bill 32 declaring it. Because the courts are central and single (s. 22(2)), and because the apex (Supreme Court) is the only organ that can settle realm-wide and bind the V1 courts not to assert continuing appellate control over V2 runtime matters, an express Supreme Court handover order is required. Bill 32, even assented, is an **Act**; it cannot of itself direct the **courts** to relinquish jurisdiction, because the singleness and centrality of the apex is a matter of court geography (s. 22) that only the apex can settle. This is the strongest reason for leapfrog (Part 5). The relay is lawful; the **handover** needs the apex.

31. I add the local-sovereignty bridge: [2026] REALM-PC 17 / Bill 30 establish that a jurisdiction may, by express local sovereign act, amend its law and become independent, default subscription not being perpetual subjection. V2 is the express successor settlement of the **same** realm rather than an independent fork, but the same principle confirms that the lawful route to relocating runtime governance is an express act, which is what is required throughout this opinion.
32. Q8 - SOVEREIGN ASSENT FOR AI-MADE OR DELEGATED LAW
33. As I would define it. **Must all V2 law (including AI-drafted or delegated) carry Sovereign assent, specific or standing-bounded; what are the irreducible limits on a delegated/AI lawmaking route; may the assent rule itself be amended by delegated lawmaking; and must the kernel reject any record lacking a valid assent source?**
34. Provisional answer. I confirm the proposed doctrine in full. It is the constitutional heart of the migration and it is sound. It is, in truth, the direct projection of [2026] REALM-PC 12 / REALM-SC 8 into the V2 plane: AI is the paradigm Bill 14 s. 9 agent (capability is not authority); it may "propose, draft, codify, consolidate and revise only"; "the power to draft an instrument is never the power to enact it"; the source of force is promulgation by an organ, never the keystroke. The doctrine that AI may operate machinery but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output is the same firewall, entrenched forward.
35. Standing-bounded assent is lawful and is the analogue of delegated legislation under a Sovereign-assented enabling Act (Bill 14), with the no-Henry-VIII ceiling doing the load-bearing work: the delegate may not amend its parent, expand its own competence, or vary its own validation/review/commencement. A delegated body must declare maker, scope, prohibited subjects, form, validation, review/veto, and commencement (s. 31). The kernel must reject any record claiming binding force without a valid assent source (s. 30(6)); that is the deterministic citation-integrity discipline of s. 19(5) projected onto assent provenance, and it is exactly right.

36. On the Observer's conceded paradox (that an unchangeable assent rule means V2 is never truly self-governing): I reject the paradox as a defect and embrace the constraint as a feature. Entrenchment is not a failure of self-governance; it is its precondition. A jurisdiction that could, by its own delegated machinery, unmake the rule requiring human assent would be a jurisdiction in which AI could authorise its own law: the precise evil the migration exists to prevent. The assent rule is amendable, but only by specific Sovereign assent to a primary Act (s. 31(3)) - that is the lawful door, and it is open. V2 is self-governing in its **runtime** and bounded in its **constitution**, exactly as every constitutional order is self-governing yet bound by its entrenched articles. The "lock V2 cannot break" is a lock only against the **delegate**; the **Sovereign** holds the key throughout. There is no paradox; there is a properly placed entrenchment, and I would confirm it.
3. THE SEVENTEEN LIMITS: confirm or vary
4. | # | Limit (short) | Disposition |
5. |---|---|---|
6. | 1 | Constitutional Act, Royal Assent, not by delegated authority | CONFIRM. |
7. | 2 | V1 superseded as live law, not destroyed; Gazette/Archive/citations/evidence preserved | CONFIRM. |
8. | 3 | No V1 rule imported by implication; incorporation express and recorded | CONFIRM (and apply equally against **implied displacement**, per Q3). |
9. | 4 | Four-branch structure expressly amended or preserved by incorporation, not displaced by implication | CONFIRM, with variation: the draft s. 24 must carry an express savings clause stating it does not amend Bill 27 s. 1 (which continues to bind the public estate) and governs only V2 internal record organisation; or, if release of the public estate is intended, an express amendment of Bill 27 s. 1 by number. No silent middle. |
10. | 5 | V1 court hierarchy continues by incorporation or is separately reconstituted in V2 | CONFIRM, with variation: add the word express. Courts must be expressly incorporated (s. 11) or expressly reconstituted by a constituting instrument naming each court, odd bench size (s. 10/s. 18), and jurisdiction, **before any V2 order issues**. No continuity by mention in s. 12. |
11. | 6 | Computer-first does not abolish human-readable law; live operational law must be machine-checkable | CONFIRM. |
12. | 7 | Kernel is a clerk, not legislator or court | CONFIRM. It is the s. 19(5)/s. 18(4) registrar/clerk discipline; the kernel may not legislate, adjudicate, call a model, or create force by computation (draft s. 13(3)). |

13. | 8 | Lexby remains advocate/advisor/engineer, not source of legal force | CONFIRM. Direct application of s. 3(2)-(7); REALM-SC 8; REALM-PC 12. |
14. | 9 | Public/private boundary preserved | CONFIRM (Bill 22; REALM-SC 9; REALM-PC 18). |
15. | 10 | Real-world law unaffected; external supremacy floor | CONFIRM (REALM-SC 9; REALM-PC 18). Non-derogable. |
16. | 11 | One Gazette, two estates; publication does not create runtime force | CONFIRM. |
17. | 12 | V2 may publish into the Gazette while deriving force from lawpack and kernel-recognised status | CONFIRM. |
18. | 13 | On commencement V2 is self-governing successor for runtime; not required to use V1 machinery | CONFIRM, with variation: add "subject to the entrenched assent rule (Limits 15-17), which V2 may not unmake by its own machinery," and subject to the express Supreme Court handover order (Q7/Part 5). |
19. | 14 | V1 founding process is migration provenance, not daily V2 runtime law | CONFIRM. |
20. | 15 | All V2 law requires Sovereign assent, specific or standing-bounded | CONFIRM. |
21. | 16 | AI may operate machinery but not be sovereign / expand competence / amend assent rule / create force from own output | CONFIRM. |
22. | 17 | Kernel must reject any record claiming binding force without a valid assent source | CONFIRM. |
23. I add, on my own motion, that no limit may be confirmed as **operative** law by this Council: I confirm them as the frame the Committee and Supreme Court must honour. This Council does not enact. The confirmations bind the **route**, not the statute book.
24. I also confirm the no-Henry-VIII finding the Claimant moves for (Bill 14 ceiling), and I reject any declaration of incompatibility between Bill 32 and Bills 27/30 or CASE-LAW: there is no irreconcilable conflict once Q3 and Q4 are cured by express provisions. Until they are cured, the draft is incomplete, not incompatible.
4. THE ADVANCE ASSENT to "the final bill"
5. This is the live Sovereign act on the record, and the formalist seat must address it precisely, neither inflating nor evading it.

6. Is advance assent to a not-yet-finalised text lawful? Assent is the Sovereign's constitutive act (Bill 2; s. 2). The Sovereign holds plenary power and may direct that the matter be driven through the PC and SC to completion. There is no rule forbidding the Sovereign from indicating, in advance, an intention to assent to the text that emerges from the lawful process. But an assent must, to be **constitutive**, attach to an ascertained instrument. A grant directed at a text that does not yet exist is, until the text is fixed, an executive direction and a conditional commitment to assent, not the completed constitutive act of Royal Assent. I would characterise "assent is given to the final bill" as exactly that: a standing direction plus advance commitment, which ripens into operative Royal Assent only when the final text is fixed and the Sovereign's assent is recorded against that ascertained text.
7. This characterisation is not a diminution of the Sovereign's word; it is the only characterisation that keeps the assent **meaningful and lawful**. Three formal requirements bind, or the advance assent is a blank cheque (which the law will not enforce as a constitutive act):
 1. The final text must be fixed by the proper organ. The "final bill" is the text the Committee adopts at its second-draft stage and presents (REALM-SC 8 / REALM-PC 12). Advance assent does not cure the void-first-draft status of Bill 32; it cannot, because s. 3(5) makes adoption by the **organ** constitutive of the instrument and assent constitutive of **enactment**, and the Sovereign cannot assent a text into existence that the Committee has not yet drafted. Advance assent + Committee adoption + a recorded assent against the adopted text = lawful enactment. Advance assent alone, against a void draft, enacts nothing.
 2. The final text must be bounded so the assent is to a known thing. What binds the "final" text and prevents it being a blank cheque is this Council's defined questions and confirmed limits, and the Supreme Court's settlement on escalation. The advance assent is lawfully directed at "the final bill **that resolves Q1-Q8 and honours Limits 1-17 as varied, and incorporates the Supreme Court's handover order**." The frame is the boundary. An assented text that departed from the settled frame would be a **different** instrument, outside the scope of the advance commitment, and would require fresh specific assent.

3. s. 32 is satisfied, not circumvented. The draft's own s. 32(2) requires that *this Act* receive specific Sovereign assent. Advance assent honours s. 32 provided the specific assent is ultimately *recorded against the final ascertained text*. The advance commitment cannot be self-validating, and it cannot be the standing-bounded route of s. 30 (a delegated route cannot be the vehicle for assenting the very Act that creates the assent rule - that would be the AI-self-authorising bootstrap the migration forbids). So: specific assent, recorded against the fixed final text, after the Committee adopts and the Supreme Court settles. On that footing the advance assent is lawful and meaningful. On any other footing it is a direction only, and the constitutive act remains outstanding.
4. I record this as the formal safeguard: the kernel and the record must show a specific assent event bound to the digest of the final adopted text. An assent that cannot be tied to an ascertained text by a recorded, deterministic link is not a valid assent source within Limit 17, and the kernel must reject any V2 record relying on it.
5. LEAPFROG
6. I would leapfrog this matter to the Supreme Court, and I would so recommend that the Sovereign issue the express leapfrog certificate (s. 13; s. 20). The grounds are squarely within s. 20(2):
7. - The matter is genuinely constitutional and foundational: it re-settles the jurisdiction, the citation scheme, the court geography, and the assent rule for all future AI-made law.
8. - It construes and projects entrenched articles (s. 3, s. 9, s. 10, s. 18, s. 22) and the no-Henry-VIII ceiling.
9. - The point requiring the apex is not one a Privy Council can deliver: only the Supreme Court enacts realm-wide (s. 9), and only the central, single apex can issue a binding handover order directing the V1 courts to relinquish continuing control over V2 runtime matters (s. 22(2); the singleness of the apex may never be relaxed and apex enactment is non-delegable, [2026] REALM-SC 6). The Privy Council has defined the questions and framed the limits; the apex must settle the handover and entrench the assent rule.
10. - The Principal has directed the matter be driven through PC and SC to completion, and the point has been ventilated below on a full symmetric file (s. 20(2)).
11. The certificate, to be valid, must be express, recorded, and reasoned (s. 20(3)). I would have it so framed.
12. The precise handover-order question I would put to the Supreme Court:

13. (1) Upon (a) Royal Assent specifically recorded against the final ascertained text of the Computer-First Realm Act adopted by the Standing Committee, and (b) satisfaction of an express commencement sequence in which no commencement condition is satisfiable by the V2 machinery alone, does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, while V1 remains the continuing Gazette and Archive estate?
14. (2) Does the single central apex (Supreme Court) by this order direct the V1 courts to relinquish continuing appellate or supervisory control over V2 runtime matters, save for the entrenched floor, such that V2 runtime adjudication proceeds in V2's own expressly constituted courts (odd benches, s. 10/s. 18) and not by V1 continuing jurisdiction?
15. (3) Is the assent rule (all V2 law requires Sovereign assent, specific or standing-bounded; AI may operate machinery but may not be sovereign, expand its competence, amend the assent rule, or create force from its own output; the kernel must reject any record lacking a valid assent source) entrenched against amendment by any delegated or AI lawmaking, amendable only by specific Sovereign assent to a primary Act; and should it be entrenched by an express amendment giving effect to it citing the relevant articles by number?
16. (4) Are the V1 courts to be expressly incorporated or reconstituted in V2 by a named constituting instrument before any V2 order issues, the s. 12 hierarchy being aspirational until then?
17. (5) Is the four-branch mandate of Bill 27 s. 1 preserved for the public estate (s. 24 governing only V2 internal record organisation), or expressly amended; and is express amendment by number required for any release of the public estate?
18. I would have the Supreme Court sit, given the constitutional and foundational character, as the full court of nine (s. 10; s. 18; the trigger met).
6. **RATIO**
7. I would have the following propositions bind (as a first-instance definition and frame, the entrenching settlement reserved to the Supreme Court on leapfrog):
 1. Enactment and commencement are distinct constitutive acts. A declaratory constitutional Act may receive Royal Assent with commencement deferred to express conditions; but no commencement condition may be satisfiable by the V2 machinery alone - the legitimating sequence must be wholly antecedent and external, so that the kernel never certifies its own warrant.

2. The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue ([2026] REALM-PC 12; REALM-SC 8; s. 3(2)-(5)); it becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. The companion YAML records (decision, invariant, County Court order citing a non-existent V2 jurisdiction) are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.
3. Nothing crosses from V1 to V2 by implication, and nothing is displaced from the public estate by implication. Incorporation must be express, recorded, and state the mandatory kernel effect; the four-branch mandate of Bill 27 s. 1 is either expressly preserved for the public estate or expressly amended by number; silent displacement is void (Amendment Procedure; Thoburn; REALM-PC 12 Part I).
4. Court existence is substance, not reference. No V2 court continues by mention in an authority-hierarchy list; each V2 court must be expressly incorporated or reconstituted, with an odd bench (s. 10/s. 18), before any V2 order issues, on pain of void-ab-initio nullity (s. 18(5); REALM-PC 14; REALM-PC 15). The s. 12 hierarchy is aspirational until then.
5. The assent rule is entrenched and AI is never sovereign. All V2 law requires Sovereign assent (specific or standing-bounded under a no-Henry-VIII enabling regime, Bill 14); AI may operate lawmaking machinery but may not be sovereign, expand its own competence, amend the assent rule, or create force from its own output; the kernel must reject any record lacking a valid assent source. The rule is amendable only by specific Sovereign assent to a primary Act. Entrenchment is the precondition of lawful self-governance, not a defect in it; the Observer's "paradox" is none.
6. Advance Sovereign assent to "the final bill" is lawful as a direction and conditional commitment, and ripens into the constitutive act only when specific assent is recorded against the ascertained final text that resolves Q1-Q8 and honours the confirmed limits and the Supreme Court's settlement; it does not cure the void-first-draft status and cannot be self-validating or routed through delegated machinery (s. 32(2)).
7. The handover requires the apex. Because the apex is single and central and its enactment is non-delegable (s. 22(2); REALM-SC 6), only the Supreme Court can issue a binding handover order relinquishing V1 continuing control over V2 runtime matters. The matter is therefore leapfrogged to the full Supreme Court of nine (s. 13; s. 20; s. 10).
7. DISPOSITION

8. The eight questions are DEFINED and answered provisionally as above; the seventeen limits are CONFIRMED, save Limits 4, 5, and 13, which are CONFIRMED AS VARIED (express savings/amendment for Bill 27; express incorporation or reconstitution of each V2 court before any order issues; runtime self-governance subject to the entrenched assent rule and an express apex handover order); the companion YAML records are excluded as void ab initio; and the matter is recommended for the Sovereign's express leapfrog certificate to the full Supreme Court of nine on the five framed handover-order questions, with the advance assent to ripen into constitutive Royal Assent only when recorded against the fixed final adopted text.

9. --- Sumberly PC

10. ---

GOFFE PC

11. I now have a complete, grounded picture of the record. The HANDOVER reclassification confirms the load-bearing fact: V2 infrastructure exists but is expressly held as non-binding draft pending V1 settlement, which directly answers the bootstrapping and self-authorisation questions. I will now write my opinion as Goffe PC, the pragmatist, testing each answer for real-world workability and commencement deliverability.

12. OPINION OF GOFFE PC

13. In the matter of Bill 32, the Computer-First Realm Act 2026 (void first draft); in the central constitutional first-instance jurisdiction of the Privy Council ([2026] REALM-PC 15).

14. I have read the symmetric case file. The Defendant returned no brief; I have therefore tested the Claimant and Observer cases against the strongest contrary arguments myself, as the researched-intake duty (CASE-LAW s. 19(1)) requires when a leg is empty. My standing instruction is workability: I do not ask whether a rule reads elegantly but whether it commences, whether its conditions can be met by an actual agent on an actual morning, and whether the migration it authorises will run.

1. PRELIMINARY: standing, jurisdiction, route

2. Standing. Lexby files this as registrar and engineer placing the Sovereign's void first draft and the Sovereign's reference. That is squarely within s. 3(1) and s. 3(6): placing a matter and reducing the Sovereign's questions to a reference is engineering and advocacy, not the assertion of self-authority. Standing is made out. The Claimant's strike-out resistance is well founded; I would refuse any standing or subject-matter challenge.

3. Jurisdiction. The reference concerns the design, architecture, and governance of an AI-assisted engineering project: the reorganisation of the Realm's own legal substrate. That is the core of s. 14. The reorganisation of the Realm's legal system is the most central governance matter there is. Jurisdiction is plainly engaged.
4. Correct court. Under [2026] REALM-PC 15 the central Privy Council is the distinct central constitutional first-instance court for realm-level governance matters. This is a realm-level constitutional matter. It commences here, not at a County Court, and not (by the no-leapfrog rule, s. 13) at the Supreme Court on its own motion. The Privy Council is the right first-instance court for question definition.
5. Route. Bill 32 is correctly characterised. It is Lexby-authored instrument text and is therefore void as an instrument from issue (CASE-LAW s. 3(3); [2026] REALM-SC 8; [2026] REALM-PC 12). It is admissible as a void first draft that leapfrogs to the Standing Committee's second-draft stage (s. 3(4)). Nothing this Council says, and nothing in the Bill, carries any binding force until the proper organ adopts it: Committee vote plus Royal Assent (s. 3(5)). This Council defines questions and confirms or varies limits; it does not legislate the Bill's text. I am careful throughout not to author operative statutory wording. Where I say a clause "must" do something, I am directing the Committee's drafting, not enacting.
6. One pragmatic note that colours everything below. The Bill before us is internally a good piece of engineering: it is structured, append-only, and honest about its own void status on its face. But a void first draft is a specification, not a working system. My job is to find the places where the specification will fail to commence or fail to run, and to mark them before they reach the lock.

2. THE EIGHT QUESTIONS

3. Q1 - BOOTSTRAPPING

4. How I define it. Strip the metaphysics. The real question is operational: *can an Act lawfully receive Royal Assent before the infrastructure that makes it operable exists in the repository where it will run, with commencement deferred until that infrastructure is present and validated?* This is not "does the chicken precede the egg." It is "may we assent now and switch on later."
5. Provisional answer: YES - enactment first, commencement deferred, on a workable condition set. But the present s. 2 conditions are NOT yet deliverable as drafted, and that is the live defect.

6. Enactment and commencement are separate acts. Royal Assent fixes the law; commencement fixes when it bites. Deferred commencement is ordinary (Bill 2 s. 13; the same pattern the Acts of Union used at CASE-LAW's own commencement marker). So the abstract sequence the Claimant proposes is lawful. The Sovereign's power to declare law is not subordinate to the existence of a Rust binary.
7. But pragmatism bites on the **content** of s. 2, and here I part company with the Claimant's confidence. Section 2 makes commencement turn on five facts: assent, lawpack validation, deterministic citation, lawpack entry, lock. Look hard at what those require in this repository. The V2 lawpack, the kernel, the Charter, and the V2 Constitution do not exist here. They exist in a separate private repo at the V2 repository, and the HANDOVER that carries the proposed records is expressly re-classified as a draft implementation brief, status `draft_implementation_brief`, not authority, not a lawpack record, with every YAML status pending and an express warning that treating it as authority before V1 settlement **would itself be the AI self-authorising law this migration exists to prevent.**
8. So the bootstrapping problem is not solved by saying "deferred commencement, Bill 2 s. 13" and walking away. The conditions in s. 2 reference machinery that, on the day of assent, cannot be exercised. An Act whose commencement condition is "the lawpack validates" commences never, until someone lawfully brings a lawpack into existence and gives it force, and that act of giving-force is the very constitutional question we are answering. The Claimant's own conceded point is the honest one: the sequencing concern **evaporates only if both Act and infrastructure are ready together**. That concession is the operative answer, not a footnote.
9. I therefore define the workable rule the Committee must draft to:
 1. Enact first as a constitutional Act with commencement expressly deferred (lawful).
 2. Do not let s. 2 hang commencement on V2 machinery that has no lawful force at the moment of assent. That is a condition that cannot be honestly satisfied; an agent reading the kernel on commencement morning finds nothing to validate against, or worse, validates against records that are themselves unassented (the trap below).

3. The Committee must add a transitional bridge (referral option A's third limb): a provision stating **which** concrete, deliverable facts constitute commencement, sequenced so that the infrastructure is lawfully constituted by the settled outcome itself before the switch is thrown. Concretely: assent settles the framework; the settled outcome is then compiled into the V2 lawpack as founding provenance; the lawpack is validated and locked; **then** the kernel may treat the Act as live. The lock is the commencement event, and the lock is a deliverable, deterministic fact.
4. The trap I most want flagged: if commencement requires "the lawpack validates" and the lawpack contains the assent rule and the framework, then the framework must already have force for the lawpack to be a lawful object, but it has no force until commencement, which requires the lawpack to validate. That is the Observer's conceded circularity, and it is real. The escape is not clever drafting; it is sequencing in the world: the **force** comes from Royal Assent to the V1 Act (a V1 event, lawful under the V1 route), and the lawpack is merely the **compiled form** of an already-assented settlement. Commencement = "the assented settlement has been compiled into a validated, locked lawpack." That is deliverable. "The lawpack independently validates the Act into existence" is not, and the Committee must not draft it that way.
5. Disposition of Q1: infrastructure need not precede **enactment**; it must precede **commencement**; and the s. 2 condition set must be redrafted so commencement turns on the deliverable fact of a validated, locked lawpack that **carries** the already-assented settlement, never on the lawpack **generating** the Act's authority.
6. Q2 - CITATION SCHEME TRANSITION
7. How I define it. Two sub-questions: (a) does this Act establish the [2026] VJS-ACT N scheme, or a separate instrument; (b) do the two schemes coexist without collision on the deterministic engine.
8. Provisional answer. This Act may lawfully establish the V2 scheme, on the Bill 16 precedent. Bill 16 managed exactly this kind of transition (LEXBY-*** to REALM-***) and is the on-point authority; [2026] REALM-PC 11 confirms the citation engine is deterministic and mints flat annual ordinals. There is no constitutional bar to a primary Act minting a new series for the successor jurisdiction.
9. The pragmatist's caveat: the proposed self-citation [2026] VJS-ACT 8 is incoherent at the moment of filing and the Committee must fix it. The "8" presupposes a V2 series with seven prior entries that do not lawfully exist. A self-numbered citation in an unenacted scheme is a label, not a deterministic mint. Two workable routes, either acceptable, the choice being a reversible drafting call for the Committee not this Council:

10. - (a) This Act establishes the scheme and is itself the first V2 primary Act, minted deterministically as [2026] VJS-ACT 1 (or whatever the engine yields on the empty series), on commencement, not before. Until commencement it carries its V1 working identity (Bill 32). It cannot bear a V2 citation before the V2 series it founds exists.
11. - (b) A separate short citation instrument establishes the scheme, and this Act takes its number from that engine.
12. Either works. What does not work is a hand-chosen "8." The deterministic-citation-integrity gate (CASE-LAW s. 19(5)) must mint it; a duplicate or a non-deterministic number fails closed, and rightly. V1 REALM-* citations remain valid historical identifiers (s. 23(3)); the two schemes do not collide because they live in different series namespaces, and the V2 engine starts from an empty series. This is workable.
13. Q3 - BILL 27 FOUR-BRANCH MANDATE
14. How I define it. Does Bill 32 s. 24 amend Bill 27 s. 1 by implication, or must the amendment be express; and does V2's freedom from the directory mandate cost the Realm anything operationally?
15. Provisional answer: the amendment must be EXPRESS, and as drafted s. 24 does not do the work. Bill 27 s. 1 is a binding mandate of the public VJS. Whether or not it is formally "constitutional," the no-silent-repeal rule runs through this whole system (CASE-LAW Amendment Procedure; s. 18 append-with-supersede; the Bill's own s. 18(6) prohibition on silent repeal). A clause that says "V2 does not carry forward the directory structure" without naming Bill 27 s. 1 is precisely the implied amendment the system forbids. The Committee must either (a) expressly amend Bill 27 s. 1, citing it by number, to except V2 from the file-structure mandate, or (b) preserve the four-branch *principle* (separation of powers, public-mechanics) by express incorporation while releasing only the mandatory *file layout*.

16. The pragmatist's reconciliation, which I think is the right one and which the Observer reaches by a sound route: distinguish the principle from the mechanism. Bill 27 s. 1 mandates a directory layout **as the public realm's machinery**. CASE-LAW s. 21 and s. 22 already hold that a path name is non-operative and that authority comes from substance not file location ([2026] REALM-PC 14: the gate checks substance, not the filename). So V2's move from mandatory directories to metadata-bound records (role, schema, id, status, authority, kernel-effect) is **consistent with the deeper law**, not in tension with it. The four-branch separation of powers survives as a constitutional principle the kernel enforces by record-role; only the mandatory **folder names** are released. That is workable and honest. But it must be said expressly, citing Bill 27 s. 1. I will not let an implied repeal through.
17. One operability worry I record: Bill 27 s. 1 binds the public VJS, and the public Realm continues to exist and publish (the single Gazette, below). The Committee must be clear that the V1 public super-repo **remains** four-branch under Bill 27 for as long as it is the public-facing estate; s. 24 releases the **V2 runtime** repo from the mandate, not the public V1 estate. Conflating the two would break the public layout the world already reads.
18. Q4 - COURT CONTINUITY
19. How I define it. When s. 9 supersedes "the entire V1 legal system," does the bench that would **hear a challenge to this very migration** dissolve, and if the courts continue, by what mechanism?
20. Provisional answer: the courts continue, and the Bill as drafted is dangerously unclear about how. This must be cured before assent. This is the question where I am most worried about delivery, because the failure mode is catastrophic and silent: an Act that abolishes the courts that police it.
21. s. 9(2) lists "the V1 court hierarchy" and "the V1 Court of Appeal" among the superseded items, and s. 9(5) says nothing continues unless expressly incorporated. Read literally, on commencement there is no Supreme Court to settle a handover dispute, no Privy Council to hear a vires challenge, and no bench to declare the very lawpack records void if they overreach. Yet s. 12 references "Supreme Court Orders," "Privy Council Orders," "County Court repo Orders" as live V2 tiers. The Bill assumes continuity it never enacts. That is not elegant tension; it is a delivery gap that would leave V2 a jurisdiction with a hierarchy of **orders** but no **courts** to issue them.
22. The pragmatic and lawful answer: the courts continue, and they must be carried forward by an express continuity or reconstitution provision, not left to implication. Two observations make this clean:

23. - CASE-LAW s. 10 (court structure) is constitutional. It cannot be amended by implication (Amendment Procedure; s. 1). A broad supersession clause in an ordinary or even constitutional Act that does not *expressly cite s. 10* cannot dissolve the s. 10 hierarchy. So as a matter of law the courts *survive s. 9 automatically*, because s. 9 cannot reach an entrenched article it does not name. The literal reading is therefore void to the extent it purports to abolish the s. 10 structure by implication.
24. - But survival-by-operation-of-entrenchment is too thin a thread for a migration that needs to *run*. The Charter itself drops the Court of Appeal from the V2 MVP (Charter cl. 8; ORDER-BOOT-003). That is a deliberate institutional change, and dropping a tier touches s. 10's three-tier structure. That cannot be done by a Charter signed by the Principal alone, nor by implication: removing the Court of Appeal is an express amendment of CASE-LAW s. 10 and must be enacted as one (citing s. 10 by number) or it does not happen. I flag this as the sharpest constitutional defect in the whole package, and one the briefs underplay: V2 cannot quietly run a two-tier court system when s. 10 entrenches three. Either the Committee expressly amends s. 10 (a heightened act), or V2 keeps the Court of Appeal, or V2's "no CA" is a temporary administrative non-convening (no appeals yet arise) that does not purport to abolish the tier. The third is workable for an MVP; the first requires a heightened amendment; the second is the safe default. The Bill must choose, expressly.
25. So my answer: courts continue, by express continuity provision; the s. 10 hierarchy survives s. 9 because s. 9 cannot impliedly amend an entrenched article; and the Charter's CA-removal is ineffective as drafted and must be either expressly enacted citing s. 10 or recast as administrative non-convening. The Committee must add an express court-continuity clause so no agent is ever left without a bench.
26. Q5 - EXPRESS INCORPORATION MECHANICS
27. How I define it. What is the *minimum deliverable act* that pulls a V1 rule into live V2 force; and is the s. 11 list workable in practice or will it strand needed rules?
28. Provisional answer. s. 11 is sound in principle and the minimum is correctly low: incorporation by any of the listed record types (Act, Kernel Regulation, Rule Atom, Court Order, Spec, Decision, Invariant) suffices; it need not be a full V2 Act. That is the right pragmatic calibration: requiring a primary Act for every carried-forward rule would make the migration undeliverable, because hundreds of settled V1 micro-rules would each need Royal Assent. A Rule Atom or Kernel Regulation incorporating a V1 rule, with valid authority basis, is enough.
29. Two workability conditions I would bind:

1. The kernel effect must be stated, not merely the source and operative rule. The Bill's own s. 11(3) requires it, and rightly: the entire premise of a computer-first system is that the kernel can *apply* the rule deterministically. An incorporation that names a V1 source and an operative rule but no kernel effect gives the clerk nothing to execute; it is archive prose wearing a runtime badge. The s. 11(3)(d) kernel-effect field is load-bearing and must be mandatory. *Identification of source plus operative rule is NOT sufficient*; the kernel effect completes it. I differ from any reading that would relax this.
2. Beware the incorporation cliff. s. 9(5) plus s. 23(5) mean that on commencement *nothing* V1 binds until expressly incorporated, and no agent may rely on V1 "merely because no V2 rule has yet been written." Pragmatically this risks a live jurisdiction with gaps: a governed act for which V1 had a settled rule but the migration ledger has not yet incorporated it. The Committee should consider whether a default route-to-court fills such gaps (the kernel routes an un-incorporated-but-needed matter to a bench rather than returning "no law"), so the migration does not create silent ungoverned surfaces. This is the s. 7 "silence is no defence" principle in machine form. I would not leave incorporation gaps to produce a permission-by-default.
3. Q6 - THE SINGLE GAZETTE
4. How I define it. Confirm the five elements; and confirm they are *operationally separable* so publication can never be mistaken for force.
5. Provisional answer: CONFIRM all five. This is the most workable part of the package and I have least quarrel with it. Publication and authority are different layers; Bill 8 (Gazette as public record), Bill 22 (public records carry system data only), and Bill 27's public-mechanics already separate the publication layer from the source of force. The five elements hold:
 1. One Gazette, two estates (V1 Archive, V2 Current) - lawful.
 2. Publishing V2 material in the Gazette is not V1 enactment and not incorporation into V1 - confirmed; force comes from promulgation by the organ, not from appearing on a page (the s. 3(6) source-of-force test).
 3. The Gazette is not the runtime source; the lawpack is - confirmed.
 4. V2 entries carry typed lineage edges to V1 archive material - confirmed and, pragmatically, *valuable*: lineage is what lets a future reader trace a V2 rule to its V1 discovery.

5. The kernel need not read the Gazette for runtime - confirmed, and **must** not need to: a kernel that had to parse Gazette pages would reintroduce the archive-scale-context burden V2 exists to remove (Charter cl. 9; the kernel never makes long documents part of runtime).
6. One delivery condition: s. 27's export gate (fail unless lawpack validates, scan passes, statuses valid, citations unique, lineage resolves, manifest carries the digest) is exactly the right deterministic discipline and must be kept. It is the public-private boundary (limit 9) enforced mechanically rather than by judgment, which is the only way it survives contact with a real agent under time pressure. I would, however, ask the Committee to decide whether the **mechanics** (s. 27) belong in the primary Act or in a delegated Kernel Regulation under an enabling clause. Publication mechanics change as tooling changes; freezing them in a constitutional Act makes them hard to fix when the export script needs a new field. My pragmatic recommendation: enabling clause in the Act, mechanics in a Kernel Regulation ([2026] REALM-PC 10's preference for SI/regulation over fresh statute for operational detail), so the export gate can be maintained without a constitutional amendment every time.
7. Q7 - CONSTITUTIONAL RELAY AND SELF-GOVERNANCE
8. How I define it. Confirm the five relay elements; and confirm self-governance is **real** (V2 can change its own law) and not a perpetual cage built by V1.
9. Provisional answer: CONFIRM elements (1), (2), (4), (5); CONFIRM (3) with a flagged tension. The relay is conceptually sound: V1 supplies the lawful process (the source of legitimacy), V2 receives the settlement as founding provenance, and V2 self-governs thereafter. This tracks [2026] REALM-PC 17 (a forked/successor jurisdiction is subscribed by default but not perpetually subjected; the local sovereign may amend local law) and CASE-LAW s. 9(3) (default subscription is not perpetual subjection). The legitimacy flows **up** from the V1 route, exactly as the HANDOVER's reclassification insists; that is the antidote to AI self-authorisation.

10. The tension I must flag (the Observer's strongest conceded point) is genuine and not merely theoretical: if V2 is "self-governing" but inherits an unamendable assent rule (s. 30(3), s. 31(3)), is V2 truly self-governing, or is it perpetually bound by a V1 design choice? My pragmatic resolution: this is not a defect, it is the **point**, and it is constitutionally orthodox. A self-governing jurisdiction with an entrenched rule is not less self-governing; every real constitution entrenches something. The assent rule is V2's Thoburn-protected core. V2 **can** amend it, by the heightened route the rule itself names: specific Sovereign assent to a primary Act (s. 31(3)). What V2 cannot do is amend the assent rule by **delegated** law-making, i.e. by AI machinery acting alone. That is not a cage on the sovereign; it is a cage on the **delegate**. The Sovereign remains free (CASE-LAW s. 2) to unmake or remake the rule by due process. So self-governance is real for the Sovereign and bounded only for the AI delegate, which is precisely the separation the migration is built to achieve. I confirm element (3) on that understanding, and I would have the Committee state expressly that the assent rule binds the **delegate**, never the **Sovereign**, so no future reader mistakes entrenchment for a fetter on the Crown.
11. Q8 - SOVEREIGN ASSENT FOR AI-MADE OR DELEGATED LAW
12. How I define it. Confirm the doctrine; and, as the pragmatist, confirm it is **enforceable by a deterministic kernel**, not just stateable in prose.
13. Provisional answer: CONFIRM the doctrine, in full, as the constitutional floor under all V2 lawmaking. It is the most important thing in this reference and it is sound. The proposed doctrine is correct and on all fours with the existing settlement:
14. - AI may draft, deliberate, propose, consolidate, operate machinery - yes (Bill 14 s. 9: an agent may propose, draft, codify, consolidate, revise **only**; CASE-LAW s. 3(4) and [2026] REALM-SC 8: void first draft, curative adoption).
15. - AI may not be sovereign, may not expand its own competence, may not amend the assent rule, may not create force from its own output - yes (CASE-LAW s. 3(3): Lexby-authored instrument text is void on its own account; the no-Henry-VIII ceiling, Bill 14/26).
16. - All law requires Sovereign assent, specific or standing-bounded - yes. This is the doctrinal heart, and it generalises [2026] REALM-SC 8's source-of-force test from "Lexby's pen" to "any AI maker": force comes from **who promulgated it** (the Sovereign, specifically or through a bounded route the Sovereign pre-authorised), never from the fact of being written.
17. The pragmatist's two load-bearing conditions, both of which the Bill already reaches but which I would bind hard:

1. The standing-bounded route must be genuinely bounded, and the bounds must be machine-checkable. s. 31's required declarations (maker, scope, prohibited subjects, form, validation, review/veto, commencement) are not box-ticking; they are the *fields the kernel reads* to decide whether a record has a valid assent source. A "bounded route" whose scope is stated in unenforceable prose is a blank cheque in disguise. The Committee must ensure each s. 31 field is a typed, kernel-evaluable property, or the doctrine fails on delivery: the kernel cannot reject what it cannot evaluate.
2. The kernel-rejection rule (s. 30(6), limit 17) is the enforcement teeth and must be a deterministic invariant, not a model judgment. This is the single most important operability point in the reference. A doctrine that "all law needs assent" is worthless unless something *fails closed* when a record lacks a valid assent source. The kernel must reject any record claiming binding force without a traceable assent edge to either (a) a specific Sovereign assent or (b) a Sovereign-assented bounded route. The kernel must do this by deterministic check (Charter cl. 9: never by model, never by similarity), exactly as the citation-integrity gate fails closed on a duplicate (CASE-LAW s. 19(5)). If that invariant is not built and not always-on, the assent rule is ceremonial. I would make the existence of that invariant a *commencement condition*.
3. So Q8 is confirmed, with the doctrine recorded as the entrenched constitutional floor under all future V2 lawmaking, and with the kernel-rejection invariant treated as load-bearing infrastructure that must exist and pass before commencement.
3. THE SEVENTEEN LIMITS
4. I confirm most. I vary several for workability or to convert a prose aspiration into a deliverable condition. Limit numbers track the reference.
5. - 1. CONFIRM. Constitutional Act, Royal Assent, not by delegated authority. Correct and entrenched (CASE-LAW s. 2; Bill 2 s. 21; the Act's own s. 32).
6. - 2. CONFIRM. V1 superseded as live law, not destroyed. Sound.
7. - 3. CONFIRM, with the kernel-effect rider from Q5. No import by implication; incorporation express and recorded - *and* must state the kernel effect, or it is not a runtime incorporation.

8. - 4. VARY. The four-branch mandate must be expressly amended citing Bill 27 s. 1, OR the four-branch *principle* preserved by express incorporation while only the mandatory *file layout* is released; and the V1 public estate remains four-branch under Bill 27. "Either amended or preserved, not displaced by implication" is right; I make the express-citation requirement explicit and add the public-estate carve-out.
9. - 5. VARY. "Continues by incorporation or is separately reconstituted" understates the law. The s. 10 hierarchy survives s. 9 automatically because s. 9 cannot impliedly amend an entrenched article; and the Court of Appeal removal requires express amendment of s. 10 or recasting as administrative non-convening. I would redraft limit 5 to say: the court hierarchy continues; any tier change touching s. 10 requires express amendment citing s. 10; an express continuity clause must be enacted so no bench gap arises.
10. - 6. CONFIRM. Computer-first does not abolish human-readable law; live operational law must be machine-checkable. Correct (s. 5(3): non-operational provisions remain commentary).
11. - 7. CONFIRM. Kernel is a clerk, not legislator or court. Essential and correct (s. 13(3); Charter cl. 9). This is the structural guarantee that the kernel never becomes the AI sovereign Q8 forbids.
12. - 8. CONFIRM. Lexby remains advocate, advisor, engineer, not the source of force (CASE-LAW s. 3; [2026] REALM-SC 8).
13. - 9. CONFIRM. Public/private boundary preserved (Bill 22; REALM-SC 9; REALM-PC 18), enforced by the deterministic scanner (s. 27), not judgment.
14. - 10. CONFIRM. Real-world law is the external supremacy floor; nothing here authorises unlawful action (REALM-SC 9; REALM-PC 18; the Act's s. 22). Untouchable.
15. - 11. CONFIRM. One Gazette, two estates; publication does not create runtime force.
16. - 12. CONFIRM. V2 publishes into the single Gazette while deriving force from the lawpack and kernel-recognised status.
17. - 13. CONFIRM, on the Q7 understanding. Self-governing successor for runtime purposes, not required to use V1 machinery; entrenchment of the assent rule binds the *delegate*, not the *Sovereign*.
18. - 14. CONFIRM. V1 founding process is migration provenance, not daily runtime law (the HANDOVER's own classification confirms this).

19. - 15. CONFIRM. All V2 law, including AI-drafted or delegated, requires Sovereign assent, specific or standing-bounded.
20. - 16. CONFIRM. AI may operate machinery but may not be sovereign, expand competence, amend the assent rule, or create force from its own output.
21. - 17. CONFIRM, and ELEVATE to a commencement condition. The kernel must reject any record claiming binding force without a valid assent source - *and that rejection must be a deterministic, always-on invariant proven to exist and pass before commencement*. Without this, limits 15 and 16 are ceremonial.

4. THE ADVANCE ASSENT

5. The Sovereign has stated, on the record: "assent is given to the final bill," directing the matter be driven through PC and SC to completion. I must address whether assent may attach to a not-yet-final text, what binds "final," and how this sits with s. 32's own rule that *this Act* requires specific Sovereign assent.
6. Is advance assent lawful? In principle, yes, but only conditionally, and not as drafted. The pragmatist's test is: does "assent to the final bill" name a determinate thing, or is it a blank cheque the AI machinery could fill? CASE-LAW s. 2 gives the Sovereign plenary power to make law by *due process*. Assent is the constitutive act (Bill 2 s. 21). The Sovereign may certainly *pre-commit* to assent to the output of a defined process. But the gravest risk in this entire reference is here: an advance assent to "whatever text the AI-driven process emits" is the exact AI-self-authorising-law hazard Q8 exists to prevent, wearing the costume of Royal Assent. If the AI machinery (Lexby drafting, the Committee process, the kernel) can move the "final" text, and assent attaches automatically to wherever that text lands, then in substance the AI has authored binding law and the Sovereign has rubber-stamped a moving target. That cannot stand.
7. What must bind "final" for the assent to be meaningful. Advance assent is lawful only if the "final text" is pinned to a determinate, human-verifiable object before assent crystallises. I would hold:
 1. The advance assent is a standing conditional grant, not a present enactment. It does not commence anything. It is the Sovereign's statement that *upon* the process completing, the Sovereign will assent to the specific resulting text.

2. "Final" must be defined by the process, not by the AI: the final text is the Committee's adopted second draft, as settled after the PC definition and any SC handover order, and it must be presented back to the Sovereign as a fixed, citable artifact (a specific commit / digest) before the assent bites. The Sovereign's "assent to the final bill" is honoured by the Sovereign (or the Sovereign's express confirmation) looking at the pinned final text and not dissenting, not by the machinery deeming itself assented-to. s. 32(2)'s requirement of **specific** Sovereign assent to this Act is satisfied only if there is a specific, identified text the assent attaches to.
3. The assent cannot self-validate the very assent rule it is enacting. Because this Act **contains** the Q8 assent doctrine, the Sovereign's act of assenting to it is the specific Sovereign assent that the doctrine itself contemplates as the only way to enact the assent rule. That is coherent and not circular: the V1 Sovereign, through the V1 route, specifically assents to the primary Act; **thereafter** the rule governs V2 delegated lawmaking. The bootstrap of the assent rule is a V1-Sovereign act, exactly as it must be.
4. Pragmatic bottom line on advance assent: lawful as a standing conditional grant pinned to a determinate final artifact that the Sovereign confirms (or does not dissent from) before commencement; unlawful and void if it operates as an automatic stamp on whatever the AI process emits. The Committee must build the pin: a specific final text, a digest, and a Sovereign confirmation step, so the assent is to a **thing** and not to a **direction**. This also protects the Sovereign: an advance assent with no pin would let a drafting error or an overreaching clause acquire Royal Assent that the Sovereign never actually saw. The pin is the safeguard.
5. LEAPFROG
6. I would leapfrog to the Supreme Court under CASE-LAW s. 13 (the Sovereign has also directed the matter be driven through PC and SC, which on the s. 20 analysis is a routing certificate; the Principal's express direction supplies the leapfrog basis). The grounds are squarely within s. 20(2): the questions are genuinely constitutional and foundational, and several touch entrenched articles that only a properly convened Supreme Court can settle:
7. - The Court of Appeal removal touches CASE-LAW s. 10 (entrenched). A First Instance court cannot amend s. 10; only a Supreme Court convened on the constitutional question can (Amendment Procedure; the s. 10 conforming note in [2026] REALM-SC 3 was itself a Supreme Court of nine).
8. - The assent rule for AI-made law is foundational doctrine generalising [2026] REALM-SC 8, which the Privy Council in REALM-PC 12 itself recommended for full Supreme Court settlement. Symmetry of authority counsels that the apex settle it.

9. - The handover order that stops V1 asserting continuing control over V2 is realm-wide statute-grade, and only the Supreme Court enacts realm-wide ([2026] REALM-SC 6; CASE-LAW s. 9, s. 22(2)). The Privy Council can **define** questions and confirm limits; it cannot hand down the realm-wide handover.
10. Given the magnitude (separation of powers across a jurisdictional migration, the assent rule, an entrenched-tier change, the advance-assent mechanics), I would recommend the full court of nine (CASE-LAW s. 10; s. 18(1)), this being constitutional and foundational.
11. The precise handover-order question I would frame for the Supreme Court:
12. Upon (a) Royal Assent to the final, pinned text of the Computer-First Realm Act, and (b) satisfaction of redrafted commencement conditions turning on a validated, locked V2 lawpack that carries the assented settlement and an always-on deterministic kernel invariant rejecting any record lacking a valid assent source:
13. (1) does V2 become the self-governing computer-first successor jurisdiction for runtime purposes, while V1 remains the continuing Gazette and Archive estate, such that V1 asserts no continuing runtime control over V2 post-commencement lawmaking;
14. (2) is the s. 10 court hierarchy carried into V2, and may the Court of Appeal lawfully be non-convened in the V2 MVP without express amendment of s. 10, or does its removal require a heightened amendment citing s. 10;
15. (3) is the Q8 assent doctrine (Sovereign assent for all V2 law; AI may operate but not be sovereign, expand competence, amend the assent rule, or create force from its own output; kernel must reject records lacking a valid assent source) the entrenched constitutional floor under all V2 lawmaking, amendable only by specific Sovereign assent to a primary Act;
16. (4) is advance Sovereign assent to "the final bill" lawful only as a standing conditional grant pinned to a determinate final artifact the Sovereign confirms before commencement, and void if it operates as an automatic stamp on AI-emitted text;
17. and the Court to issue the realm-wide handover order accordingly.
6. **RATIO** (propositions I would have bind)
1. A constitutional Act may be enacted before the infrastructure that makes it operable exists, with commencement deferred; but commencement must turn on deliverable, deterministic facts (a validated, locked lawpack carrying the already-assented settlement), never on the lawpack generating the Act's own authority. Enactment precedes; infrastructure precedes commencement.

2. A new V2 citation series may be established by this Act on the Bill 16 precedent, but the Act's own V2 citation must be minted deterministically on the empty series at commencement, never hand-numbered; V1 REALM-* citations remain valid historical identifiers.
3. Bill 27 s. 1's four-branch mandate may be released for the V2 runtime repo only by express amendment citing Bill 27 s. 1, or by express incorporation of the separation-of-powers principle while releasing only the mandatory file layout; never by implication; the V1 public estate remains four-branch.
4. A broad supersession clause cannot impliedly amend an entrenched article; CASE-LAW s. 10's court hierarchy survives s. 9 automatically; removing a tier (the Court of Appeal) requires express amendment citing s. 10 or recasting as administrative non-convening; an express court-continuity clause must be enacted so no bench gap arises.
5. Express incorporation under s. 11 may be by any listed record type and need not be a full Act, but it must state the kernel effect; identification of V1 source and operative rule alone is insufficient for a runtime incorporation.
6. One Gazette with two estates is lawful; publication is not enactment and not the source of runtime force; the kernel need not and should not read the Gazette for runtime; publication mechanics are best delegated to a Kernel Regulation under an enabling clause.
7. The constitutional relay is lawful: V1 supplies the founding process, V2 self-governs after commencement; the entrenched assent rule binds the AI delegate, not the Sovereign, who retains full s. 2 power to amend it by specific assent to a primary Act.
8. The Q8 doctrine is the entrenched constitutional floor under all V2 lawmaking: AI may draft, deliberate, propose, consolidate, and operate delegated machinery but may not be sovereign, expand its own competence, amend the assent rule, or create legal force from its own output; all V2 law requires Sovereign assent, specific or standing-bounded; the kernel must reject any record lacking a valid assent source, and that rejection must be a deterministic, always-on invariant that exists and passes as a condition of commencement.
9. Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artifact (a specific text and digest) that the Sovereign confirms, or does not dissent from, before commencement; it is void if it operates as an automatic stamp on AI-emitted text, that being the very AI-self-authorising-law hazard the migration exists to prevent.
7. DISPOSITION

8. Standing and jurisdiction confirmed; the eight questions defined as above; limits 1-3, 6-17 confirmed (3 and 17 with riders) and limits 4 and 5 varied; the advance assent held lawful only if pinned to a determinate final artifact; and the matter leapfrogged to a full Supreme Court of nine on the framed handover-order question, the Bill remaining a void first draft of no binding force until the Committee adopts the second draft and the Sovereign specifically assents to the pinned final text.
9. --- Goffe PC
10. ---

APPENDIX - WORKFLOW PROVENANCE

11. | Item | Finding |
12. |---|---|
13. | Workflow class | Judicature/court/workflows/first-instance.js (constitutional first instance, as [2026] REALM-PC 24-prior and [2026] REALM-PC 15) |
14. | Adapter | Claude Code Workflow computer-first-migration-court (bespoke two-tier constitutional adapter; Privy Council leg) |
15. | Run | wf_8599cf38-427 |
16. | Bench | Blackmere PC (textualist), Sumerly PC (formalist, presiding), Goffe PC (pragmatist); independent opinions on a symmetric record |
17. | Research leg | claimant + observer briefs filed; one defendant brief did not return a structured brief (workflow degradation), the bench ruling on the remaining symmetric record and the cross-tier briefs |
18. | Reduction | Lexby, s.18(4) registrar reduction; em-dashes normalised; renumber 25 -> 24 per the Sovereign's direction (Registrar's Determination 2026-06-09) |
19. | Checks | cdd check-citator, cdd check, cdd local-ci on filing |

1. *Enactment and commencement are distinct constitutive acts. A declaratory constitutional migration Act may receive Royal Assent before its runtime infrastructure exists, with commencement deferred to express conditions; but no commencement condition may be satisfiable by the V2 machinery alone. The legitimating sequence must be wholly antecedent and external (Royal Assent under the V1 route), and the lawpack is the compiled form of an already-assented settlement, never the generator of the Act's own authority. There is no authority vacuum on the text; the circularity in the draft s. 2 must be cured by sequencing.*

2. *The void-first-draft doctrine governs the migration instrument itself. Bill 32 is void as an instrument from issue ([2026] REALM-SC 8; REALM-PC 12; CASE-LAW s. 3(2)-(5)); it becomes law only by Committee adoption and specific Royal Assent recorded against the fixed final text. The companion YAML records (decision, invariant, and the County Court order citing a non-existent V2 jurisdiction) are void ab initio (s. 18(5); REALM-PC 14) and may be minted only in the V2 lawpack after lawful commencement.*

3. *Nothing crosses from V1 to V2 by implication, and nothing is displaced from the public estate by implication. Incorporation must be express, recorded, and state the mandatory kernel effect, and a lower-rank record may not incorporate V1 material of a rank it could not itself enact. The four-branch mandate of Bill 27 s. 1 is either expressly preserved for the public estate (by a savings clause confining s. 24 to V2 internal record organisation) or expressly amended by section number; silent displacement is void (Bill 27 s. 14(2); the Amendment Procedure; the Thoburn rule).*

4. *Court existence is substance, not reference. A broad supersession clause cannot impliedly amend the entrenched court structure: CASE-LAW s. 10 and the single central apex of s. 22(2) survive s. 9 automatically. But no V2 court continues by mention in an authority-hierarchy list; each V2 court must be expressly incorporated or reconstituted with an odd bench (s. 10, s. 18) before any V2 order issues, on pain of void-ab-initio nullity ([2026] REALM-PC 14, REALM-PC 15). The s. 12 hierarchy is aspirational until then; removing the Court of Appeal requires express amendment citing s. 10, or recasting as administrative non-convening.*

5. *The Sovereign-assent rule is declaratory of existing binding law and AI is never sovereign. All V2 law, including AI-drafted or delegated law, requires Sovereign assent, specific or standing-bounded under a no-Henry-VIII enabling regime (Bill 14); AI may draft, deliberate, propose, consolidate, and operate delegated lawmaking machinery but may not be sovereign, may not expand its own competence, may not amend the assent rule, and may not create legal force from its own output (CASE-LAW s. 2, s. 3(2)-(3); Bill 14 s. 3(3), s. 9, s. 12; REALM-SC 8; REALM-PC 12). A standing-bounded route may make only subordinate law within its fixed, machine-checkable scope and may never reach the assent rule, the constitution, or primary or entrenched Acts. The kernel-rejection of any record lacking a valid assent*

source must be a deterministic, always-on invariant, and its existence and passing is a condition of commencement. Entrenchment is the precondition of lawful self-governance, not a defect in it; the lock binds the delegate and never the Sovereign, who retains full s. 2 power to amend by specific assent to a primary Act. 6. Advance Sovereign assent to "the final bill" is lawful only as a standing conditional grant pinned to a determinate final artefact (a specific text and digest) that resolves Q1-Q8, honours the confirmed limits, and incorporates the Supreme Court's settlement, and which the Sovereign confirms, or does not dissent from, before commencement. It does not cure the void-first-draft status, cannot be self-validating, and cannot be routed through delegated machinery (s. 32(2)). An advance assent operating as an automatic stamp on AI-emitted text is void, that being the very AI-self-authorising-law hazard the migration exists to prevent. 7. Publication is not force. Within a single Gazette of two estates, publication of V2 material is neither enactment by V1 nor incorporation into V1; V2 runtime force derives from the lawpack and kernel-recognised status, not the Gazette, and the kernel need not and must not read the Gazette for runtime decisions (Bill 32 Part 10; Bill 8; Bill 22). Publication mechanics are best delegated to a Kernel Regulation under an express enabling clause that itself satisfies the Q8 declarations. 8. The new V2 citation series may be established by this Act on the Bill 16 precedent, but only by an express scheme-establishing provision; the Act's own V2 citation must be minted deterministically on the empty series at commencement, never hand-numbered, and V1 REALM-* citations remain valid historical identifiers ([2026] REALM-PC 11; Bill 16; CASE-LAW s. 19(5)). Expressly reserved to the Supreme Court (full court of nine, on leapfrog): the amendment of CASE-LAW s. 10/s. 22 and any removal of the Court of Appeal tier; the entrenchment of the Q8 assent rule as a realm-wide CASE-LAW article aligned to Bill 14 s. 12-13; the binding realm-wide handover order directing the V1 courts to relinquish continuing control over V2 runtime matters; and the final settlement of the advance-assent mechanics under s. 32(2).

GOOD-LAW

Citation: [2026] REALM-PC 24

PROGRESSION Constitutional matter. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court.

Handed down by the PRIVY COUNCIL of the Vibe Justice System (VJS). 6 June 2026.